

**Office of Patent Quality Assurance
Statutory Compliance Master Review Form
Guidance Document
03/04/2026**

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MRF Overview

Examiner is an (check one):

☐ **Examiner with Signatory Authority**

Check this box if the assigned examiner and the individual signing the Office action are the same. Unless clear evidence to contrary, the assumption is that the individual who signed the Office action has the appropriate signatory authority to sign the action.

☐ **Examiner without Signatory Authority**

Check this box if the assigned examiner is different than the individual signing the Office action.

If "Examiner without Signatory Authority" is checked:

The Office action was signed by a (check one):

☐ **SPE**

Check this box if the signature box for the individual signing the Office action includes the title SPE.

☐ **Examiner with Signatory Authority**

Check this box if the assigned examiner and the individual signing the Office action are different. Unless clear evidence to contrary, the assumption is that the individual who signed the Office action has the appropriate signatory authority to sign the action.

☐ **Unsigned**

This box is designed for SPE/TC/Ad Hoc use and is hidden for OPQA random reviews.

Rejections made in the Office action? (Check all that apply)

- ☐ **None**
- ☐ **35 USC 102 - Anticipation**
- ☐ **35 USC 103 - Obviousness**
- ☐ **35 USC 112(a) – Enablement**
- ☐ **35 USC 112(a) – Written Description**
- ☐ **35 USC 112(b)**
- ☐ **35 USC 112(d)**
- ☐ **35 USC 101 – Subject Matter Eligibility**
- ☐ **35 USC 101 - Utility**
- ☐ **35 USC 101 – Statutory Double Patenting**
- ☐ **Nonstatutory Double Patenting**

☐ Other Made Rejection(s)

Were there any omitted rejections? (Check all that apply)

- ☐ None
- ☐ 35 USC 102 - Anticipation
- ☐ 35 USC 103 - Obviousness
- ☐ 35 USC 112(a) – Enablement
- ☐ 35 USC 112(a) – Written Description
- ☐ 35 USC 112(b)
- ☐ 35 USC 112(d)
- ☐ 35 USC 101 – Subject Matter Eligibility
- ☐ 35 USC 101 - Utility
- ☐ 35 USC 101 – Statutory Double Patenting
- ☐ Nonstatutory Double Patenting

Compliance of Rejections Made

When rejecting a claim, to meet the Office's burden of establishing unpatentability, the patentability determination must be correct and must, at a minimum, (1) identify the claim and relevant statute, and (2) set forth sufficient evidence to put a person skilled in the art on notice as to why the claim is unpatentable so as to provide applicant with a fair opportunity to respond. The sufficiency of the evidence must be considered in the context of the entire prosecution history, including any accompanying examiner explanations.

The correctness of a patentability determination is considered through the lens of whether the patentability determination(s) were reasonable and not based on what the reviewer would have done in the first instance.

MRF Compliance Questions: 35 USC 102 Rejection Made

A claimed invention may be rejected under 35 U.S.C. 102 when the invention is anticipated (or is “not novel”) over a disclosure that is available as prior art. To reject a claim as anticipated by a reference, the disclosure must teach every element required by the claim under its broadest reasonable interpretation.

1. Were all the 35 USC 102 rejection(s) in compliance?

Yes or No

If a 102 rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance requires that the rejection properly identifies the claim(s), the statute (including subparagraphs) and is supported by sufficient evidence to support the anticipation of the claim(s) by the applied disclosure. The statutory compliance scenarios should be consulted for assistance in determining compliance.

- i. *If “Yes”, go to question 6*
- ii. *If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 102 rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in:

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. For all of the claims identified in question 2 as having a noncompliant 35 USC 102 rejection applied, was another compliant prior art rejection applied?

Yes or No

- i. If “Yes”, continue to question 3A
- ii. If “No”, continue to question 4

An individual claim may be rejected by prior art under multiple grounds with some grounds being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant prior rejection, either under 102 or 103, is applied. If every claim listed as having a noncompliant 102 rejection in Question 2 has another compliant prior art rejection, then the reviewer should answer “Yes”. Otherwise, the question should be answered “No”.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer “No”.

Example 1:

The 102 rejection of claims 1-10 as being anticipated by Smith is noncompliant. No other prior art rejections either under 102 or 103 are applied to any of claims 1-10. All of the claims determined to have a noncompliant 102 rejection do not have another compliant prior art rejection. The question should be answered "No".

Example 2:

The 102 rejection of claims 1-10 as being anticipated by Smith is noncompliant. There is also a compliant rejection of claims 1-10 as anticipated by Jones. All of the claims determined to have a noncompliant 102 rejection also have another compliant prior art rejection. The question should be answered "Yes".

Example 3:

The 102 rejection of claims 1-10 as being anticipated by Smith is noncompliant. There is also a compliant rejection of claims 5-10 as anticipated by Jones. All of the claims determined to have a noncompliant 102 rejection do not have another compliant prior art rejection. The question should be answered "No".

Example 4:

The 102 rejection of claims 1-10 as being anticipated by Smith is noncompliant. There is also a compliant 103 rejection of claims 1-10 as obvious over Jones in view of Marshall. All of the claims determined to have a noncompliant 102 rejection also have another compliant prior art rejection. The question should be answered "Yes".

A. The compliant prior art rejection(s) was applied under:

a. ☐ 35 USC 102

b. ☐ 35 USC 103

4. Explain why the rejection(s) is non-compliant (check all that apply):

a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute/subparagraph.

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

The box is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the reference fails to anticipate the claims listed, the rejection fails to have sufficient evidence to support the grounds of rejection and box 4(c) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

When the disclosure relied upon as the basis of the rejection is not prior art under the subparagraph applied, but it could be applied under a different subparagraph, the proper subparagraph has not been properly identified. In this situation, it would be appropriate to check box 4(a) as the applied statute is incorrect. However, if the disclosure is not available under any subparagraph, do not check this box. Rather, check box 4(b).

This box should not be checked when the reviewer has determined that the rejection should have been made under 103 rather than 102. This box is not intended to capture omitted rejections. The statutory compliance standard and scenarios should be consulted for determination when the fact pattern would rise to the level of being a noncompliance.

Similarly, if the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 102 rejection and not by checking box 4(a).

Explanation of non-compliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

b. ☐ The disclosure(s) relied upon does not qualify as prior art.

The disclosure is not prior art under any subparagraph. If the disclosure is available as prior art but not as identified, do not check box 4(b). Rather, check box 4(a).

Explanation of noncompliance related to disclosure not prior art:

Only comments directed to the basis for the noncompliance based on the disclosure not being prior art should be included in this comment box. The reviewer should explain why the disclosure is not available as prior art. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- c. ☐ **The rejection(s) does not provide sufficient evidence to demonstrate that the disclosure(s) teaches every element required by the claim under its Broadest Reasonable Interpretation.**

When the rejection applied fails to reasonably establish that the claimed invention is anticipated, box 4(c) should be checked. The statutory compliance scenarios should be consulted for assistance in determining whether the rejection sufficiently evidences the rejection.

If 4(c) is checked, then at least one of 4(c)(1)-4(c)(2) must be checked.

1. ☐ **There was no citation(s)/mapping to the prior art in the rejection(s) for the missing element/limitation(s) that serves as the basis for the noncompliance.**

Box 4(c)(1) is meant to capture when no guidance has been provided for the limitation(s) identified as the basis for the noncompliance. The degree of the correlation should not be a consideration. In considering to check this box, the reviewer should focus solely on the missing limitation(s) which are the basis for the noncompliance. This box should be checked when the rejection fails to provide any guidance for how the limitation(s) which is the basis of the noncompliance is met by the reference.

Example 1:

Claim 1 is rejected as anticipated by Smith. The rejection points generally to the embodiment illustrated in Figure 1 to show the claimed limitations A, B and C. Reviewing the reference including Figure 1, the reviewer concludes that there is no teaching for claim limitation C and indicates this is the basis for the noncompliance in the review. Since the rejection has given some correlation to the how the limitation is met by the prior art, box 4(c)(s) should not be checked.

Example 2:

Claim 1 is rejected as anticipated by Smith. The rejection correlates limitation A to element 111 and limitation B to element 112. However, the rejection fails to map limitation C to Smith. The reviewer finds no support for limitation C in Smith and indicates in the review that this is basis for the noncompliance. Since the rejection has given no correlation between the Smith and limitation C, box 4(c)(1) should be checked.

2. ☐ **The rejection maps the limitation(s) identified as the basis for the non-compliance to the prior art, but the relevant portion(s) does not provide sufficient evidence to meet the limitation(s).**

Box 4(c)(2) is meant to capture when the rejection provides at least some correlation of the limitation which has been articulated as basis for the noncompliance. This evaluation is not dependent on the amount of mapping provided.

Example:

Claim 1 is rejected as anticipated by Smith. The rejection points to the embodiment illustrated in Figure 1 to show the claimed limitations A, B and C. Reviewing the reference, the reviewer concludes that there is no teaching for claim limitation C and provides this limitation as the basis for the noncompliance. Box 4(c)(2) should be checked since some degree of correlation to the prior art has been provided.

Explanation of noncompliance related to the lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(c).

When the noncompliance is based on the lack of sufficient evidence to meet the BRI of the claimed invention, the reviewer should specifically identify each claim and claim limitation which is a basis for the noncompliance. The reviewer should further note how the reference applied fails to meet the limitation(s). If the rejection has correlated the limitation(s), an explanation directed to why the interpretation is not appropriate must also be provided.

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Data/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-5f that apply to the noncompliance issue(s) raised. The comments in the respective "Explanation" text boxes should support the reasoning for each box checked below. If none of boxes 5a-5e apply, then check box 5f. The reviewer should not guess with regard to the root cause of the noncompliance.

- a. ☐ The rejection(s) included obviousness rationale.
- b. ☐ The rejection improperly relied on features from different embodiments.
- c. ☐ Improper reliance on inherency was applied.

Box 5(c) should be checked when the rejection relies on inherency to meet a claim limitation and the review has asserted as the basis for the noncompliance that it was applied improperly. In some rejections, it cannot be determined if the examiner is relying on inherency since no statement is explicitly present. This box should only be checked when the rejection provides an explicit assertion that limitations are met by inherency and that assertion is improper.

- d. ☐ The non-compliance is the result of an unreasonable claim interpretation.

Box 5(d) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patentable significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(d) should not be checked. Box 5(d) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

- e. ☐ The rejection is part of a "102/103" Rejection

When reviewing a "102/103" rejection, both the 102 Rejection Made section and the 103 Rejection Made section must be completed. The reviewer must assess the 102 and 103 rejections separately for compliance based on the alternative interpretations applied to the respective bases for the rejection. If separate 102 and 103 rejections are made in the

office action that are not presented in the form of a “102/103” rejection, box 5(e) should not be checked.

f. ☐ None of the above

6. 102 Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection.

In situations where the reviewer finds that a prior art rejection made by the examiner under 102 is non-compliant and the reviewer wishes to suggest a compliant prior art rejection against the claims for TC consideration, the reviewer may include any information concerning a suggested compliant prior art rejection for TC consideration here.

Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of the 102 Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 102. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy or correctly applied. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 102 Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) reasonably pinpoints where substantially all limitations are met by the prior art (e.g., written specification; drawings) <i>This box should be checked when the rejection points to precise locations where the reference teaches the claim limitations. This box should not be checked when the rejection refers to large portions of the reference or generally to a Figure.</i>
☐	The rejection(s) includes pasted pertinent figures with annotations (as appropriate) which pinpoint where limitations are met by the prior art
☐	The rejection(s) goes beyond pinpointing where the limitations are taught by: • summarizing how/why the limitations is met by the prior art or • reciting terminology from the prior art in the rejection so as to more readily equate terminology from the claims with terminology from the prior art <i>This box should be checked when the rejection, in addition to mapping the claim limitations to precise locations in the reference, explains how/why the citations teach the claim limitations and/or sets forth terminology from the reference that is equated with the terminology in the claims.</i> <i>If this box is checked, then the “reasonably pinpoints” characteristic above should also be checked.</i>
☐	Statements of patentable weight are included, particularly when patentable weight is not being given to any of the following: • Preamble • Intended use limitations • Claim language that suggests or makes optional some structure or steps
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)

	Characteristics of 102 Rejection(s)
☐	For limitations which invoke 112(f), explained how the prior art structure was either the same as the disclosed corresponding structure or an equivalent thereto <i>The box for this characteristic should only be checked when the body of the art rejection itself mentions that the structure in the reference is either the same as, or equivalent to, the disclosed corresponding structure of a 112(f)-invoking term.</i>
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	Included detailed technical analysis in regards to the invention and/or the applicability of the prior art
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 102 Rejection(s)

If any of the rejections under 35 USC 102 were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 102 Rejection Made that:

MRF Compliance Questions: 35 USC 103 Rejection Made

Prima Facie Case for 35 USC 103:

A claimed invention may be rejected under 35 U.S.C. 103 when the invention is obvious subject matter. To support the conclusion that the claimed invention is directed to obvious subject matter, the rejection should articulate a prima facie case of obviousness. Findings of fact should be supported by sufficient evidence in the prior art. The rejection should articulate how the prior art is to be modified to arrive at the claimed invention. The reasoning/rationale should be taught by the prior art applied or provided by the examiner in a convincing line of reasoning as to why the artisan would have found the claimed invention to have been obvious in light of the teachings of the prior art applied.

1. Were all the 35 USC 103 rejection(s) in compliance?

Yes or No

If a 103 rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the conclusion of obviousness of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If "Yes", go to question 6*
- ii. If "No", continue to question 2*

2. Identify the claim(s) with non-compliant 103 rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an "Explanation of Noncompliance" section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in:

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 are noncompliance. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. For all of the claims identified in question 2 as having a noncompliant 35 USC 103 rejection applied, was another compliant prior art rejection applied?

Yes or No

- i. If “Yes”, continue to question 3A
- ii. If “No”, continue to question 4

An individual claim may be rejected by prior art under multiple grounds with some grounds being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant prior rejection, either under 102 or 103, is applied. If every claim

listed as having a noncompliant 103 rejection in Question 2 has another compliant prior art rejection, then the reviewer should answer “Yes”. Otherwise, the question should be answered “No”.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer “No”.

Example 1:

The 103 rejection of claims 1-10 as being obvious over Smith in view of Jones is noncompliant. No other prior art rejections either under 102 or 103 are applied to any of claims 1-10. All of the claims determined to have a noncompliant 103 rejection do not have another compliant prior art rejection. The question should be answered “No”.

Example 2:

The 103 rejection of claims 1-10 as being obvious over Smith in view of Jones is noncompliant. There is also a compliant rejection of claims 1-10 as obvious over Hoover in view of Nguyen. All of the claims determined to have a noncompliant 103 rejection also have another compliant prior art rejection. The question should be answered “Yes”.

Example 3:

The 103 rejection of claims 1-10 as being obvious over Smith in view of Jones is noncompliant. There is also a compliant rejection of claims 5-10 as anticipated by Jones. All of the claims determined to have a noncompliant 103 rejection do not have another compliant prior art rejection. The question should be answered “No”.

Example 4:

The 103 rejection of claims 1-10 as being obvious over Smith in view of Jones is noncompliant. There is also a compliant 102 rejection of claims 1-10 as anticipated by Marshall. All of the claims determined to have a noncompliant 103 rejection also have another compliant prior art rejection. The question should be answered “Yes”.

A. The compliant prior art rejection(s) was applied under (check all that apply):

a. ☐ 35 USC 102

b. ☐ 35 USC 103

4. Explain why the rejection(s) is non-compliant (check all that apply):

a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute/subparagraph.

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

The box is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the reference fails to anticipate the claims listed, the rejection fails to have sufficient evidence to support the grounds of rejection and box 4(c) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

When the disclosure relied upon as the basis of the rejection is not prior art under the subparagraph applied, but it could be applied under a different subparagraph, the proper subparagraph has not been properly identified. In this situation, it would be appropriate to check box 4(a) as the applied statute is incorrect. However, if the disclosure is not available under any subparagraph, do not check this box. Rather, check box 4(b).

This box should not be checked when the reviewer has determined that the rejection should have been made under 102 rather than 103. This box is not to capture omitted rejections. The statutory compliance standard and scenarios should be consulted for determination when the fact pattern would rise to the level of being a noncompliance.

Similarly, if the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 103 rejection and not by checking box 4(a).

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

b. ☐ The disclosure(s) relied upon does not qualify as prior art.

The disclosure is not prior art under any statute. If the disclosure is available as prior art but not as identified, do not check box 4(b). Rather, check box 4(a).

Explanation of noncompliance related to disclosure not prior art:

Only comments directed to the basis for the noncompliance based on the disclosure not being prior art should be included in this comment box. The reviewer should explain why the disclosure is not available as prior art. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

c. ☐ The rejection(s) fails to provide sufficient evidence to establish a prima facie case of obviousness

When the rejection applied fails to reasonably establish a prima facie case for obviousness, box 4(c) should be checked. The statutory compliance scenarios should be consulted for assistance in determining whether the rejection sufficiently evidences the rejection. If 4c is checked, then the basis for lack of sufficient evidence must be identified by checking at least one of boxes 4ci-4cv.

i. ☐ The findings of fact are not properly articulated and/or evidenced (e.g., missing limitation). (check all that apply)

Box 4(c)(i) should be checked when the basis for the noncompliance is directed to the finding of facts. The finding of facts is directed to the rejection correlating the limitations of the claims to teachings in the references applied. When the teachings relied on are not found within the references, then box 4(c)(i) should be checked. When 4(c)(i) is checked then one of 4(c)(i)(A)1-3 must be checked as well as one of 4(c)(i)(B) or (C).

A. The rejection correlated the element/limitation(s) identified as the basis of the noncompliance to:

1. ☐ The primary reference

If the rejection does not correlate and/or discuss a limitation, then it must be assumed that the primary reference is being relied on for that limitation.

2. ☐ A secondary reference

3. ☐ Official Notice (e.g. well known; common knowledge)

Check this box when the rejection is relying on any statement that knowledge is known without providing evidence and this is the basis for the noncompliance.

B. ☐ There was no citation(s)/mapping to the prior art in the rejection(s) for the missing element/limitation that serves as the

basis for the non-compliance.

Box 4(c)(i)(B) is meant to capture when no guidance has been provided for the limitation(s) identified as the basis for the noncompliance. The degree of the correlation should not be a consideration. In considering to check this box, the reviewer should focus solely on the missing limitation(s) which are the basis for the noncompliance. This box should be checked when the rejection(s) fails to provide any guidance for how the limitation(s) which is the basis of the noncompliance is met by the reference.

Example 1:

Claim 1 is rejected as obvious over Smith in view of Jones. The rejection relied on Smith for the teachings of limitations A, B and C. The rejection generally points to Figure 1 to show the claimed limitations A, B and C. Reviewing the Smith including Figure 1, the reviewer concludes that there is no teaching for claim limitation C and this is not the point of modification. The review indicates missing limitation C is the basis for the noncompliance in the review. Since the rejection has given some correlation to the how the limitation is met by the Smith, the primary reference, box 4(c)(i)(B) should not be checked.

Example 2:

Claim 1 is rejected as obvious over by Smith in View of Jones. The rejection correlates limitations A to element 111 in Smith and only asserts generally that limitation B is taught by Jones. The reviewer finds no support for limitation B in Jones and indicates in the review that this is basis for the noncompliance. Since the rejection has given no correlation/mapping between the Jones and limitation B, box 4(c)(i)(B) should be checked.

- C. ☐ The rejection maps the limitation(s) identified as the basis for the noncompliance to the prior art, but the relevant portion(s) does not provide sufficient evidence to meet the limitation(s).**

Box 4(c)(i)(C) is meant to capture when the rejection provides at least some correlation of the limitation which has been articulated as basis for the noncompliance. This evaluation is not dependent on the amount of mapping provided.

Example 1:

Claim 1 is rejected as obvious over Smith in view of Jones. The rejection relied on Smith for the teachings of limitations A, B and C.

The rejection generally points to Figure 1 to show the claimed limitations A, B and C. Reviewing the Smith including Figure 1, the reviewer concludes that there is no teaching for claim limitation C and this is not the point of modification. The review indicates missing limitation C is the basis for the noncompliance in the review. Since the rejection has given some correlation to the how the limitation is met by the Smith, the primary reference, box 4(c)(i)(C) should be checked.

- ii. ☐ **The rejection(s) does not adequately articulate how the prior art is modified to arrive at the claimed invention.**

Box 4(c)(ii) is meant to capture when the rejection does not clearly articulate how a primary reference is being modified. For guidance for when a specific fact pattern will result in a noncompliance please consult the compliance standard and scenarios.

- iii. ☐ **The rejection(s) does not articulate a proper reason or rationale (e.g., motivation).**

Box 4(c)(iii) is meant to capture when the rejection does not clearly articulate the reason or motivation for the modification.

1. ☐ **The prior art applied does not support the combination (e.g., nonanalogous art; prior art teaches away).**

Box 4(c)(iii) is meant to capture when there would be no reason to make the modification asserted in the rejection. This would include but is not limited the art is nonanalogous, the prior art teaches away or the proposed modification would destroy the reference being modified.

2. ☐ **The conclusion of obviousness relied on impermissible hindsight.**

3. ☐ **No articulated reason or rationale present.**

- iv. ☐ **Improper reliance on case law.**

- v. ☐ **In light of secondary considerations, the finding of obviousness is improper.**

Box 4(c)(v) is meant to capture situations where a rejection is made but the prima facie case of obviousness is convincingly rebutted with evidence of secondary considerations.

Explanation of noncompliance related to the lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(c).

When the noncompliance is based on the lack of sufficient evidence to meet the BRI of the claimed invention, the reviewer should specifically identify each claim and claim limitation which is a basis for the noncompliance. The reviewer should further note how the reference applied fails to meet the limitation(s). If the rejection has correlated the limitation(s), an explanation directed to why the interpretation is not appropriate must also be provided.

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Data/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-5f that apply to the noncompliance issue(s) raised. The comments in the "Explanation of 35 U.S.C. 103 Noncompliance" should support the reasoning for each box checked. If none of boxes 5a-5e apply, then check box 5f. The reviewer should not guess with regard to the root cause of the noncompliance.

a. ☐ Improper reliance on inherency was applied.

Box 5(a) should be checked when the rejection relies on inherency to meet a claim limitation and the review has asserted as the basis for the noncompliance that it was applied improperly. In some rejections, it cannot be determined if the examiner is relying on inherency since no statement is explicitly present. This box should only be checked when the rejection provides an explicit assertion that limitations are met by inherency and that assertion is improper.

b. ☐ Improper use of Official Notice

c. ☐ The non-compliance is the result of an unreasonable claim interpretation.

Box 5(c) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patentable significance. In some rejections, it cannot be determined

how the claims are being interpreted. In these situations, box 5(c) should not be checked. Box 5(c) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

- d. ☐ **The 35 USC 103 noncompliance issue was solely inherited from a noncompliance issue raised under 35 USC 102.**

This box should be checked only when the non-compliance under 35 USC 103 is inherited from a non-compliant 102 rejection made and is not the result of another issue of non-compliance.

- e. ☐ **The rejection is part of a “102/103” Rejection**

When reviewing a “102/103” rejection, both the 102 Rejection Made section and the 103 Rejection Made section must be completed. The reviewer must assess the 102 and 103 rejections separately for compliance based on the alternative interpretations applied to the respective bases for the rejection. If separate 102 and 103 rejections are made in the Office action that are not presented in the form of a “102/103” rejection, box 5(e) should not be checked.

- f. ☐ **None of above**

6. 103 Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection.

In situations where the reviewer finds that a prior art rejection made by the examiner under 103 is non-compliant and the reviewer wishes to suggest a compliant prior art rejection against the claims for TC consideration, the reviewer may include any information concerning a suggested compliant prior art rejection for TC consideration here.

Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of the 103 Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 103. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection. Specific examples related to 103 Characteristics can be found in the “OPQA Quality Enhancement Meeting: 103 Characteristics” slide deck dated June 2021. It can be found in the RQAS reference materials section of OPQA SharePoint under MRF Resources> Compliance MRF Training Slides.

Reminders about Characteristics

- Check all boxes for characteristics reflected in the rejection or various parts of the Office action.
- A checked characteristic box indicates presence of a characteristic, not effectiveness of its application.
- Not based on:
 - Accuracy or effectiveness of the application of the characteristic
 - Being applied in an accolade-worthy manner
 - Status of review as noncompliant, pass through or attention needed
- The terms “substantially” and “reasonably” leave latitude for the reviewer to assess whether, as a whole, the rejection or Office action is indicative of the characteristic.

103 Characteristic General Guidance

The presence of a 103 characteristic should be based on the information provided within the 103 rejection itself in the instant Office action with the following exceptions:

- A. *103 characteristics may be inherited from a prior art (e.g. 102) rejection in the instant Office action if the 103 builds on that rejection.*
- B. *The 103 characteristics may be based on a separate claim interpretation section in the instant Office action if the information is relevant to the 103 rejection.*
- C. *The 103 characteristics may be based on another section of the instant Office action when the 103 rejection refers to that section and, therefore, incorporates that information by reference into the 103 rejection.*

	Characteristics of 103 Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) reasonably pinpoints where substantially all limitations are met by the prior art (e.g., written specification; drawings) <i>This box should be checked when the rejection points to precise locations where the reference teaches the claim limitations. This box should not be checked when the rejection refers to large portions of the reference or generally to a figure.</i>
☐	The rejection(s) includes pasted pertinent figures with annotations (as appropriate) which pinpoint where limitations are met by the prior art
☐	The rejection(s) goes beyond pinpointing where the limitations are taught by: • summarizing how/why the limitations is met by the prior art or • reciting terminology from the prior art in the rejection so as to more readily equate terminology from the claims with terminology from the prior art <i>This box should be checked when the rejection, in addition to mapping the claim limitations to precise locations in the reference(s), explains how/why the citations teach the claim limitations and/or sets forth terminology from the reference(s) that is equated with the terminology in the claims.</i> <i>If this box is checked, then the “reasonably pinpoints” characteristic above should also be checked.</i>
☐	The rejection(s) articulates a reasonable rationale for each modification individually addressing each modification with a separate rationale as appropriate
☐	Statements of patentable weight are included, particularly when patentable weight is not being given to any of the following: • Preamble • Intended use limitations • Claim language that suggests or makes optional some structure or steps
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)

	Characteristics of 103 Rejection(s)
☐	For limitations which invoke 112(f), explained how the prior art structure was either the same as the disclosed corresponding structure or an equivalent thereto <i>The box for this characteristic should only be checked when the body of the art rejection itself mentions that the structure in the reference is either the same as, or equivalent to, the disclosed corresponding structure of a 112(f)-invoking term.</i>
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	Included detailed technical analysis in regards to the invention and/or the applicability of the prior art
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 103 Rejection(s):

If any of the rejections under 35 USC 103 were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 103 Rejection Made that:

MRF Compliance Questions: 35 USC 112(a) Enablement Rejection Made

Prima Facie Case for 35 USC 112(a) Enablement:

A particular claim may be rejected under 35 U.S.C. 112(a) Enablement if the disclosure, when filed, does not contain sufficient information regarding the subject matter of the claims as to enable one skilled in the pertinent art to make and use the claimed invention.

1. Were all the 35 USC 112(a) Enablement rejection(s) in compliance?

Yes or No

If a 112(a) Enablement rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the conclusion of lack of enablement of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 6*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 112(a) Enablement rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

- 3. For all of the claims identified in question 2 as having a noncompliant 35 USC 112(a) Enablement rejection applied, was another compliant 35 USC 112(a) Enablement rejection applied?**

Yes or No

If a 112(a) Enablement rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected by under 112(a) Enablement under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 112(a) Enablement rejection has been made. If every claim listed as having a noncompliant 112(a) Enablement rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be "Yes". Otherwise, the question should be answered "No". For specific examples, please consult the "MRF In-part Instruction" document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant 112(a) Enablement rejection against it, then answer "No".

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a and 4b must be checked.

- a. ☐ The rejection does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under 112(a) Written Description rather than 112(a) Enablement. This issue may be raised as an omitted 112(a) Written Description as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 112(a) Enablement rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consulted for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ The rejection(s) does not set forth sufficient evidence as to why one of ordinary skill in the art could not reasonably make and use the invention without undue experimentation.**

When the rejection applied fails to reasonably establish that the claimed invention

lacks an enabling disclosure, box 4(b) should be checked. The statutory compliance scenarios should be consulted for assistance in determining whether the rejection sufficiently evidences the rejection.

If 4(b) is checked, then at least one of 4(b)(i)-4(b)(iv) must be checked. If none of boxes 4(b)(i)-4(b)(iii) apply, then check box 5f.

i. ☐ The rejection(s) was based on scope of enablement.

Examples of rejections based on scope of enablement include situations involving unclaimed essential subject matter (MPEP 2164.08(c), 2172.01) and single means claims (MPEP 2164.08(a)).

ii. ☐ A Wands factor analysis was needed and not provided.

iii. ☐ A Wands factor analysis was provided, but the factors were not sufficiently evidenced and/or weighted.

iv. ☐ None of the above

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-5f that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 112(a) Enablement noncompliance issues raised should support the reasoning for each box checked. If none of boxes 5a-5e apply, then check box 5f. The reviewer should not guess with regard to the root cause of the noncompliance.

- a. ☐ The analysis was more appropriate for a lack of written description rejection.
- b. ☐ The analysis primarily consists of questions to applicant rather than an analysis of enablement.
- c. ☐ The non-compliance is the result of an unreasonable claim interpretation.

Box 5(c) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(c) should not be checked. Box 5(c) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

- d. ☐ The 112(a) rejection(s) is 112(f) related.
- e. ☐ The rejection is related to a deposit of biological material.
- f. ☐ None of the above

6. 112(a) Enablement Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of 112(a) Enablement Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 112(a) Enablement. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 112(a) Enablement Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) provides citations to relevant portions of the specification and provides a thorough explanation of why the disclosure is not enabling to one of ordinary skill without undue experimentation through a discussion of each applicable Wands factor (and for any other identified factors).
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 112(a) Enablement Rejection(s)?

If any of the rejections under 35 USC 112(a) Enablement were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 112(a) Enablement Rejection Made that:

MRF Compliance Questions: 35 USC 112(a) Written Description Rejection Made

Prima Facie Case for 35 USC 112(a): Written Description:

A particular claim may be rejected under 35 U.S.C. 112(a) Written Description if there is not sufficient written description to inform a skilled artisan that the applicant was in possession of the claimed invention as a whole at the time the application was filed. With respect to newly added or amended claims, applicant should show support in the original disclosure for the new or amended claims.

1. Were all the 35 USC 112(a) Written Description rejection(s) in compliance?

Yes or No

If a 112(a) Written Description rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the conclusion of lack of sufficient written description of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 6*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 112(a) Written Description rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the

noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

- 3. For all of the claims identified in question 2 as having a noncompliant 35 USC 112 Written Description rejection applied, was another compliant 35 USC 112(a) Written Description rejection applied?**

Yes or No

If a 112(a) Written Description rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected by under 112(a) Written Description under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 112(a) Written Description rejection has been made. If every claim listed as having a noncompliant 112(a) Written Description rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be “Yes”. Otherwise, the question should be answered “No”. For specific examples, please consult the “MRF In-part Instruction” document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant 112(a) Written Description rejection against it, then answer "No".

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a and 4b must be checked.

- a. ☐ **The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under 112(a) Enablement rather than 112(a) Written Description. This issue may be raised as an omitted 112(a) Enablement as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 112(a) Written Description rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consulted for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ The rejection(s) does not provide sufficient evidence as to why applicant did not have possession of the claimed invention (check all that apply):

When the rejection applied fails to reasonably establish that the inventor did not have possession of the claimed invention, box 4(b) should be checked. The statutory compliance scenarios should be consulted for assistance in determining whether the rejection sufficiently evidences the rejection.

If 4(b) is checked, then at least one of 4(b)(i)-4(b)(iii) must be checked.

- i. ☐ The rejection(s) does not provide sufficient evidence to support the conclusion that the amended or newly added claim limitations lack support in the original disclosure (i.e., new matter).

The asserted new matter has support in the original disclosure in (check all that apply):

- A. ☐ Original claim(s)
- B. ☐ Original drawing(s)
- C. ☐ Original specification through express, implicit or inherent disclosure

- ii. ☐ The new matter was added only to the specification and does not change the scope of the claimed invention and therefore does not necessitate a rejection.

- iii. ☐ The rejection(s) does not provide sufficient evidence to support the conclusion that the inventor lacks possession of the originally claimed invention.

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-5g that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 112(a) Written Description noncompliance issues raised should support the reasoning for each box checked. If none of boxes 5a-5f apply, then check box 5g. The reviewer should not guess with regard to the root cause of the noncompliance.

- a. ☐ The analysis was more appropriate for a lack of enablement rejection.
- b. ☐ The analysis primarily consists of questions to applicant rather than an analysis of written description.
- c. ☐ The non-compliance is the result of an unreasonable claim interpretation.

Box 5(c) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patentable significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(c) should not be checked. Box 5(c) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

- d. ☐ The rejection is 112(f) related.
- e. ☐ The rejection is based on the lack of sufficient algorithm for a computer implemented invention.
- f. ☐ The rejection(s) is related to a deposit of biological material.
- g. ☐ None of the above

6. 112(a) Written Description Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to

consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of the Written Description Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 112(a) Written Description. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 112(a) Written Description Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) provides citations to the relevant portions of the specification and provides a thorough explanation of why the disclosure does not convey to one of ordinary skill, as of the filing date, that applicant was in possession of the invention as claimed.
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 112(a) Written Description Rejection(s)?

If any of the rejections under 35 USC 112(a) Written Description were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 112(a) Written Description Rejection Made that:

MRF Compliance Questions: 35 USC 112(b) Rejection Made

Prima Facie Case for 35 USC 112(b):

A claimed invention may be rejected under 35 U.S.C. 112(b) when the claims do not particularly point out and distinctly claim that which the inventor or a joint inventor regards as the invention.

1. Were all the 35 USC 112(b) rejection(s) in compliance?

Yes or No

If a 112(b) rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the conclusion of indefiniteness of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 7*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 112(b) rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. For all of the claims identified in question 2 as having a noncompliant 35 USC 112(b) rejection applied, was another compliant 35 USC 112(b) rejection applied?

Yes or No

If a 112(b) rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under 112(b) under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 112(b) rejection has been made. If every claim listed as having a noncompliant 112(b) rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be “Yes”. Otherwise, the question should be answered “No”. For specific examples, please consult the “MRF In-part Instruction” document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer “No”.

Example 1:

Claim 1 is an independent claim including limitations ABC. Claim 1 rejected under 112(b) due to lack of antecedent basis for limitation A and an indefinite limitation B. The reviewer finds that the basis for rejecting limitation A is not in compliance but the basis for rejecting limitation B is in compliance. In this situation, for all the claims identified as having a noncompliant 112(b) rejection (basis), there was another compliant rejection (basis) for rejecting the claim under 112(b). Question 3 should be answered “Yes”.

Example 2:

Claim 1 is independent and included limitation A. Claim 2 is dependent on claim 1 and adds limitation B. Claims 1-2 are rejected under 112(b). Claim 1 is rejected due to the lack of antecedent basis in limitation A and found compliant. Claim 2 inherit this deficiency. Claim 2 is additionally rejected based on the indefiniteness of limitation B and found noncompliant. In this situation, for all the claims identified as having a noncompliant 112(b) rejection (basis), there was another compliant rejection (basis) for rejecting the claim under 112(b) since claim 2 has a compliant rejection applied related limitation A. Question 3 should be answered “Yes”.

Example 3:

Claim 1 is independent and included limitation A. Claim 2 is dependent on claim 1 and adds limitation B. Claims 1-2 are rejected under 112(b). Claim 1 is rejected due to the lack of antecedent basis in limitation A and found noncompliant. Claim 2 inherits this deficiency. Claim 2 is additionally rejected based on the indefiniteness of limitation B and found compliant. In this situation since claim 1 does not have a compliant 112(b) rejection, question 3 should be answered “No”.

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a and 4b must be checked.

- a. ☐ **The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under 112(a) Written Description or Enablement. This issue may be raised as an omitted 112(a) Written Description or omitted 112(a) Enablement as appropriate. This box is not intended to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 112(b) rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consulted for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ **The rejection(s) does not provide sufficient evidence that the claim(s) does not particularly point out and distinctly claim that which the inventor or a joint inventor regards as the invention:**

If 4(b) is checked, then the basis for lack of sufficient evidence must be identified by checking at least one of 4(b)(i)-4(b)(iii).

- i. ☐ The rejection(s) did not point out the specific term or phrase that is indefinite.
- ii. ☐ The rejection(s) did not provide sufficient reasoning to support the conclusion of indefiniteness.
- iii. ☐ The rejection(s) did not provide sufficient reasoning that the claims are not drawn to that which the inventor or joint inventor regards as the invention.

35 USC 112 (b) has two separate requirements (see MPEP 2171). Since it is presumed, in the absence of evidence to the contrary, that the claims are directed to that which the inventor regards as the invention (MPEP 2172). While rare, box 4(b)(iii) should be checked when a rejection is made on this grounds.

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Noncompliance issue related to (check all that apply):

Reviewer must check at least one of boxes 5a-5k below.

- a. ☐ Breadth versus indefiniteness
- b. ☐ Relative terminology
- c. ☐ Ranges and amounts limitations
- d. ☐ Exemplary language (e.g. “for example”, “such as”, etc.)
- e. ☐ Lack of antecedent basis

- f. ☐ Functional language
- g. ☐ Alternative limitations (e.g. a Markush group)
- h. ☐ Unclaimed/Omitted essential subject matter
- i. ☐ 112(b) is related to 112(f)
- j. ☐ Unbound functional claiming
- k. ☐ Other:

6. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 6a-c that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 112(b) noncompliance issues raised should support the reasoning for each box checked. If none of boxes 6a-c apply, then check box 6d. The reviewer should not guess with regard to the root cause of the noncompliance.

a. ☐ The rejection(s) is only based on an analysis of the specification without basis in the claim terminology.

b. ☐ The noncompliance is the result of an unreasonable claim interpretation.

Box 6(b) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patentable significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 6(b) should not be checked. Box 6(b) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

c. ☐ None of the above

7. 112(b) Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

8. Characteristics of 112(b) Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 112(b). The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the "None of the above" box. When considering if the rejection is reflective of the characteristic, the terms "substantially" and "reasonably" permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 112(b) Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) provides citations to the relevant portions of the specification and explains why, even in light of the specification, the claim does not particularly point out and distinctly claim that which the inventor or joint inventors regards as the invention.
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

9. Is there an accolade related to 112(b) Rejection(s)

If any of the rejections under 35 USC 112(b) were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 112(b) Rejection Made that:

MRF Compliance Questions: 35 USC 112(d) Rejections Made

Prima Facie Case for 35 USC 112(d):

A claimed invention may be rejected under 35 U.S.C. 112(d) as being directed to an improper dependent claim when the claim contains a reference to a previous claim and does not specify a further limitation of the subject matter of the previous claim and include all the limitations of the previous claim.

1. Were all the 35 USC 112(d) rejection(s) in compliance?

Yes or No

If a 112(d) rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the rejection. The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 6*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 112(d) rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the

noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. For all of the claims identified in question 2 as having a noncompliant 35 USC 112(d) rejection applied, was another compliant 35 USC 112(d) rejection applied?

Yes or No

If a 112(d) rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under 112(d) under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 112(d) rejection has been made. If every claim listed as having a noncompliant 112(d) rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be “Yes”. Otherwise, the question should be answered “No”. For specific examples, please consult the “MRF In-part Instruction” document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer “No”.

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a and 4b must be checked.

- a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under different statute. This issue may be raised as an omitted rejection as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 112(d) rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consult for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ The rejection(s) does not provide sufficient evidence to support the rejection:**

If 4(b) is checked, then the basis for lack of sufficient evidence must be identified by checking at least one of 4(b)(i)-4(b)(ii).

- i. ☐ The rejection(s) does not provide sufficient evidence that the claim(s) does not specify a further limitation of the subject matter of the claim from which it depends.
- ii. ☐ The rejection(s) does not provide sufficient evidence that the claim(s) does not include all of the limitations of the claim from which it depends.

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-d that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 112(d) noncompliance issues raised should support the reasoning for each box checked. If none of boxes 5a-c apply, then check box 5d. The reviewer should not guess with regard to the root cause of the noncompliance.

- a. ☐ The rejection(s) should have been made under 35 USC 112(b).
- b. ☐ The noncompliance is the result of an unreasonable claim interpretation.

Box 5(b) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(b) should not be checked. Box 5(b) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

- c. ☐ The rejection(s) was improperly based on the patentable

significance of the further limitation.

d. ☐ None of the above

6. 112(d) Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of 112(d) Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 112(d). The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the "None of the above" box. When considering if the rejection is reflective of the characteristic, the terms "substantially" and "reasonably" permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 112(d) Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 112(d) Rejection(s)

If any of the rejections under 35 USC 112(d) were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 112(d) Rejection Made that:

MRF Compliance Questions: 35 USC 101 Subject Matter Eligibility Rejection Made

Prima Facie Case for 35 USC 101 Subject Matter Eligibility:

A claimed invention may be rejected under 35 U.S.C. 101 if it is not directed to one of the four statutory categories (process, machine, manufactures, composition of matter) or if the claim is directed to a judicial exception and the claim as a whole does not include additional limitations amounting to significantly more than the exception.

1. Were all the 35 USC 101 Subject Matter Eligibility rejection(s) in compliance?

Yes or No

If a 101 Subject Matter Eligibility rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute and being supported by sufficient evidence to support the Rejection. The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 6*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 35 USC 101 Subject Matter Eligibility rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

- 3. For all of the claim(s) identified in question 2 as having a noncompliant 35 USC 101 Subject Matter Eligibility rejection applied, was another compliant 35 USC 101 Subject Matter Eligibility rejection applied?**

Yes or No

If a 101 Subject Matter Eligibility rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under 101 Subject Matter Eligibility under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 101 Subject Matter Eligibility rejection has been made. If every claim listed as having a noncompliant 101 Subject Matter Eligibility rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be "Yes". Otherwise, the question should be answered "No". For specific examples, please consult the "MRF In-part Instruction" document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer "No".

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a-e must be checked.

- a. ☐ **The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b)-(e) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under different statute. This issue may be raised as an omitted rejection as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 101 Subject Matter Eligibility rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consult for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ **Step 1: The rejection(s) does not set forth sufficient evidence that the claimed invention is not directed to one of the four statutory categories of invention.**

If the box 4(b) is checked, check all of boxes 4bi-4bvii that apply.

The rejection(s) characterizes the claimed invention as:

- i. ☐ Transitory Signal/Signal per se
- ii. ☐ Software per se
- iii. ☐ Human Organism
- iv. ☐ Use Claim
- v. ☐ Information/data per se
- vi. ☐ The rejection(s) does not characterize the claimed invention, but merely asserts the claimed invention is not drawn to a statutory category.
- vii. ☐ Other:

- c. ☐ Step 2A, Prong One: The rejection(s) does not set forth sufficient evidence as to why the claimed invention is directed to a judicial exception (check all that apply):

If the box 4(c) is checked, check all of boxes 4ci-4cii that apply.

- i. ☐ The rejection(s) fails to set forth any judicial exception recited in the claim.
- ii. ☐ The rejection(s) fails to correctly characterize the judicial exception as:

If 4cii is checked then at least one of 4cii1-4 must be checked.

- 1. ☐ Product of Nature – the rejection(s) fails to correctly assess whether the claim recites a product of nature using the Markedly Different Characteristics analysis.
- 2. ☐ Law of Nature
- 3. ☐ Natural Phenomenon (other than products of nature)
- 4. ☐ Abstract Idea - The rejection(s) fails to correctly characterize the abstract idea as falling into one of the following enumerated groupings set out in the 2019 Revised Patent Subject Matter Eligibility Guidance.

If 4cii4 is checked then at least one of 4cii4a-d must be checked.

- a. ☐ Mathematical concept
- b. ☐ Certain methods of organizing human activity
- c. ☐ Mental process
- d. ☐ Tentative Abstract Idea – Claim(s) was not properly treated according to Section III(C) of the 2019 Revised Patent Subject Matter Eligibility Guidance.

- d. ☐ **Step 2A, Prong 2: The rejection(s) fails to set forth sufficient evidence as to why the claimed invention, as a whole, does not integrate the recited judicial exception into a practical application (check all that apply):**

If 4(d) is checked, then at least one of 4di-ii must be checked.

- i. ☐ **The rejection(s) does not address Step 2A, Prong Two, i.e., the rejection(s) does not contain any discussion regarding the lack of a practical application.**
- ii. ☐ **The rejection(s) addresses Step 2A, Prong Two, i.e. the discussion regarding the lack of a practical application but is insufficient.**

- e. ☐ **Step 2B: The rejection(s) fails to set forth sufficient evidence as to why the claimed invention does not provide an inventive concept (i.e. the additional elements of the claim(s) do not amount to significantly more than the judicial exception itself):**

If 4e is checked then at least one of 4ei-iii must be checked.

- i. ☐ **The rejection(s) does not identify the additional element(s) in the claim.**
- ii. ☐ **The rejection(s) does not address each of the additional elements in the claim.**
- iii. ☐ **The rejection(s) relies on the rationale that the claim simply appends well-understood, routine, conventional activities previously known to the industry, specified at a high level of generality, to the judicial exception, but does not support it with an appropriate factual determination in accordance with the Berkheimer Memorandum.**

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b)-(e).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. **Additional Information/Feedback (check all that apply):**

The reviewer should check all of the boxes 5a-c that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 101 Subject Matter Eligibility noncompliance issues raised should support the reasoning for each box checked. If none of boxes 5a-b apply, then check box 5c. The reviewer should not guess with regard to the root cause of the noncompliance.

a. ☐ The non-compliance is the result of an unreasonable claim interpretation.

Box 5(a) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(a) should not be checked. Box 5(a) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

b. ☐ The rejection is not based on the most current patent examination guidance

c. ☐ None of the above

6. 101 Subject Matter Eligibility Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of 101 Subject Matter Eligibility Rejection(s) (Check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 101 Subject Matter Eligibility. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a

manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 101 Subject Matter Eligibility Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) provides a thorough explanation that clearly identifies each step/prong of the 35 USC 101 guidelines along with an accompanying explanation on how the claim is analyzed under the step/prong.
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 101 Subject Matter Eligibility Rejection(s)

If any of the rejections under 35 USC 101 Subject Matter Eligibility were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 101 Subject Matter Eligibility Rejection Made that:

MRF Compliance Questions: 35 USC 101 Utility Rejection Made

Prima Facie Case for 35 USC 101 Utility:

A claimed invention may be rejected under 35 U.S.C. 101 Utility when there is no assertion of a specific and substantial credible utility for the claimed invention made by the applicant, and the claimed invention does not have readily apparent well-established utility.

1. Were all the 35 USC 101 Utility rejection(s) in compliance?

Yes or No

If a 101 Utility rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the and being supported by sufficient evidence to support the rejection of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 6*
- ii. If “No”, continue to question 2*

2. Identify the claim(s) with non-compliant 35 USC 101 Utility rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. For all of the claims identified in question 2 as having a noncompliant 35 USC 101 Utility rejection applied, was another compliant 35 USC 101 Utility rejection applied?

Yes or No

If a 101 Utility rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under 101 Utility under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 2, the reviewer should note whether another compliant basis for the 101 Utility rejection has been made. If every claim listed as having a noncompliant 101 Utility rejection in Question 2 has another compliant basis for the rejection, then the reviewer should answer be "Yes". Otherwise, the question should be answered "No". For specific examples, please consult the "MRF In-part Instruction" document.

If even one of the claims listed in Question 2 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer "No".

4. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 4a and 4b must be checked.

- a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct statute.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 4(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 4(b) should be selected and 4(a) should not be checked.

Failure to Properly Identify Statute/Subparagraph

Box 4(a) should not be checked when the reviewer has determined that the rejection should have been made under different statute. This issue may be raised as an omitted rejection as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 101 Utility rejection and not by checking box 4(a). The statutory compliance standard and scenarios should be consult for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ The rejection(s) does not provide sufficient evidence to support that the claimed invention has no specific and substantial credible utility which has either been asserted by the applicant or would have been readily apparent to one of ordinary skill in the art.**

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 4(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

5. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 5a-d that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 101 Utility noncompliance issues raised should support the reasoning for each box checked. If none of boxes 5a-c apply, then check box 5d. The reviewer should not guess with regard to the root cause of the noncompliance.

a. ☐ The rejection(s) was based on an unreasonable claim interpretation.

Box 5(a) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 5(a) should not be checked. Box 5(a) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

b. ☐ The rejection(s) was based on the applicant asserted utility failing to be credible.

c. ☐ The rejection(s) was based on the lack of applicant asserted utility and failed to consider what would be readily apparent to one of ordinary skill in the art.

d. ☐ None of the above

6. 101 Utility Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues

related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 4. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

7. Characteristics of 101 Utility Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 101 Utility. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 101 Utility Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

8. Is there an accolade related to 101 Utility Rejection(s)

If any of the rejections under 35 USC 101 Utility were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the

sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check "No".

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 101 Utility Rejection Made that:

MRF Compliance Questions: 35 USC 101 Statutory Double Patenting Rejection Made

Prima Facie Case for 35 USC 101 Statutory Double Patenting:

A claimed invention may be rejected under 35 U.S.C. 101 Double Patenting when the claimed invention is directed to the same invention (identical subject matter) that is claimed in a patent or co-pending application which has at least one common inventor, common assignee, common applicant or under a Joint Research Agreement.

1. Basis for rejection(s) (check all that apply):

- a. ☐ Provisional
- b. ☐ Nonprovisional

2. Were all the 35 USC 101 Statutory Double Patenting rejection(s) in compliance?

Yes or No

If a 101 Statutory Double Patenting rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute and being supported by sufficient evidence to support the rejection of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If "Yes", go to question 7
- ii. If "No", continue to question 3

3. Identify the claim(s) with non-compliant 35 USC 101 Statutory Double Patenting rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an "Explanation of Noncompliance" section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

4. **For all of the claims identified in question 3 as having a noncompliant 35 USC 101 Statutory Double Patenting rejection applied, was another compliant 35 USC 101 statutory double patenting rejection applied?**

Yes or No

If a 101 Statutory Double Patenting rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under 101 Statutory Double Patenting under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 3, the reviewer should note whether another compliant basis for the 101 Statutory Double Patenting rejection has

been made. If every claim listed as having a noncompliant 101 Statutory Double Patenting rejection in Question 3 has another compliant basis for the rejection, then the reviewer should answer be "Yes". Otherwise, the question should be answered "No". For specific examples, please consult the "MRF In-part Instruction" document.

If even one of the claims listed in Question 3 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer "No".

5. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 5a and 5b must be checked.

- a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or identify the correct basis.**

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 5(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 5(b) should be selected and 5(a) should not be checked.

Failure to Properly Identify basis

If the reviewer believes that the examiner improperly made the rejection provisional instead of non-provisional, or vice versa, then box 5(a) should be checked.

Box 5(a) should not be checked when the reviewer has determined that the rejection should have been made under Nonstatutory Double Patenting. This issue may be raised as an omitted Nonstatutory Double Patenting as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted 101 Statutory Double Patenting rejection and not by checking box 5(a). The statutory compliance standard and scenarios should be consult for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

- b. ☐ The rejection(s) does not provide sufficient evidence to support that the claimed invention is directed to the same invention.

If 5b is checked, then the basis for lack of sufficient evidence must be identified by checking at least one of 5bi-5bii.

- i. ☐ The rejection(s) fails to provide any explanation supporting the claim(s) being of the same scope (e.g., limitation matching between claim sets).
- ii. ☐ The rejection(s) fails to provide a sufficient explanation supporting the claim(s) being of the same scope (e.g., limitation matching between claim sets).

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 5(b).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

6. Additional Information/Feedback (check all that apply):

The reviewer should check all of the boxes 6a-c that apply to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 101 Statutory Double Patenting noncompliance issues raised should support the reasoning for each box checked. If none of boxes 6a-b apply, then check box 6c. The reviewer should not guess with regard to the root cause of the noncompliance.

- a. ☐ The rejection(s) should have been made under Nonstatutory Double Patenting.

The correct basis for the rejection may be raised as an omitted Nonstatutory Double Patenting rejection.

b. ☐ The noncompliance is the result of an unreasonable claim interpretation.

Box 6(b) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 6(b) should not be checked. Box 6(b) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

c. ☐ None of the above

7. 101 Statutory Double Patenting Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment boxed under Question 5. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

8. Characteristics of 101 Statutory Double Patenting Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under 35 USC 101 Statutory Double Patenting. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of 101 Statutory Double Patenting Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) reasonably pinpoints where substantially all limitations are met by the conflicting claim(s)
☐	Statements of patentable weight are included, particularly when patentable weight is not being given to any of the following: • Preamble • Intended use limitations • Claim language that suggests or makes optional some structure or steps
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	Included detailed technical analysis in regards to the invention and/or the conflicting claim(s)
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

9. Is there an accolade related to 101 Statutory Double Patenting Rejection(s)

If any of the rejections under 35 USC 101 Statutory Double Patenting were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the 101 Statutory Double Patenting Rejection Made that:

MRF Compliance Questions: Nonstatutory Double Patenting Rejection Made

Prima Facie Case for Non-statutory Double Patenting:

A claimed invention may be rejected under Nonstatutory Double Patenting when the claimed invention is directed to an invention that is not patentably distinct from an invention claimed in a patent or co-pending application which has at least one common inventor, common assignee, common applicant or under a Joint Research Agreement.

1. Basis for rejection(s) (check all that apply):

- a. ☐ Provisional
- b. ☐ Nonprovisional

2. Type of rejection (check all that apply):

- a. ☐ Anticipatory Type
- b. ☐ Obviousness Type

3. Were all the Nonstatutory Double Patenting rejection(s) in compliance?

Yes or No

If a Nonstatutory Double Patenting rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s) and being supported by sufficient evidence to support the rejection of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. *If "Yes", go to question 7*
- ii. *If "No", continue to question 3*

4. Identify the claim(s) with non-compliant Nonstatutory Double Patenting rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an "Explanation of Noncompliance" section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

5. For all of the claims identified in question 3 as having a noncompliant Nonstatutory Double Patenting rejection applied, was another compliant Nonstatutory Double Patenting rejection applied?

Yes or No

If a Nonstatutory Double Patenting rejection was made in the Office action being reviewed, the answer must be updated to either Yes or No.

An individual claim may be rejected under Nonstatutory Double Patenting under multiple bases with one basis being compliant while others are not compliant. For each and every claim listed in Question 4, the reviewer should note whether another compliant basis for the Nonstatutory Double Patenting rejection has been made. If every claim listed as having a noncompliant Nonstatutory Double Patenting rejection in Question 4 has another compliant basis for the rejection, then the reviewer should answer be “Yes”. Otherwise, the question should be answered “No”. For specific examples, please consult the “MRF In-part Instruction” document.

If even one of the claims listed in Question 4 as having a noncompliant rejection does not also have a compliant prior art rejection against it, then answer “No”.

6. Explain why the rejection(s) is non-compliant (check all that apply):

At least one of 6a and 6b must be checked.

a. ☐ The rejection(s) does not properly identify the rejected claim(s) and/or correct basis.

When either the claim(s) or the statute is the basis of the noncompliance, this box should be checked. Consult the compliance standard and scenarios for guidance.

Failure to Properly Identify Claims

Box 6(a) is not to capture when the reviewer concludes that the claim(s) listed in the statement of rejection are not properly rejected and should not have been rejected as applied. When the rejection fails to have sufficient evidence to support the grounds of rejection box 6(c) should be selected and 6(a) should not be checked.

Failure to Properly Identify Basis

If the reviewer believes that the examiner improperly made the rejection provisional instead of non-provisional, or vice versa, then box 6(a) should be checked.

Box 6(a) should not be checked when the reviewer has determined that the rejection should have been made under 101 Statutory Double Patenting. This issue may be raised as an omitted 101 Statutory Double Patenting as appropriate. This box is not to capture omitted rejections.

If the reviewer believes that additional claims should have been included in the grounds of rejection, this issue should be raised as an omitted Nonstatutory Double Patenting rejection and not by checking box 6(a). The statutory compliance standard and scenarios should be consult for determination when the fact pattern would rise to the level of being a noncompliance.

Explanation of noncompliance related to identified claim(s) and/or statute:

Only comments directed to the basis for the noncompliance based on the failure to properly identify the claim(s) and/or statute should be included in this comment box. The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

b. ☐ The rejection(s) should have been made under 35 USC 101 Statutory Double Patenting.

c. ☐ The rejection(s) does not provide sufficient evidence to support that the claimed invention is not patentably distinct.

If 6c is checked, then the basis for lack of sufficient evidence must be identified by checking at least one of 6ci-6cv.

- i. ☐ The rejection(s) improperly relied on an anticipation analysis when it should have relied on obviousness.**
- ii. ☐ The rejection(s) improperly relied on an obviousness analysis when it should have relied on anticipation.**
- iii. ☐ The rejection(s) improperly concluded that the claimed invention was not patentably distinct without either an anticipation or an obviousness analysis (e.g., absent any claim matching/analysis).**
- iv. ☐ The rejection(s) improperly relied on the instant specification as the basis for the rejection(s).**
- v. ☐ Other:**

Explanation of noncompliance related to lack of sufficient evidence:

Only comments directed to the basis for the noncompliance based on the failure to provide sufficient evidence should be included in this comment box. The reviewer should explain the basis for the noncompliance related to lack of sufficient evidence. An explanation should be provided in support of and consistent with the boxes checked under 6(c).

The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

7. Additional Information/Feedback (check all that apply):

The reviewer should check boxes 7a if it applies to the noncompliance issue(s) raised. The comments in the explanations of the 35 U.S.C. 101 Statutory Double Patenting noncompliance issues raised should support the reasoning for checking box 7a. If box 7a is not checked, then check box 7b. The reviewer should not guess with regard to the root cause of the noncompliance.

a. ☐ The noncompliance is the result of an unreasonable claim interpretation.

Box 7(a) should be checked when the basis for noncompliance is based on a limitation which was improperly construed and/or given patent significance. In some rejections, it cannot be determined how the claims are being interpreted. In these situations, box 7(a) should not be checked. Box 7(a) should only be checked when the rejection provides some guidance or indication of how the claim limitation which is the basis for the noncompliance is being construed so as to read on the prior art, and this interpretation is unreasonable.

b. ☐ None of the above

8. Nonstatutory Double Patenting Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in the appropriate comment box under Question 6. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

9. Characteristics of Nonstatutory Double Patenting Rejection(s) (check all that apply):

These boxes represent characteristic that may be exemplified in rejections made under Nonstatutory Double Patenting. The reviewer should check all boxes that apply to the office

action reviewed. If none of the best practices apply, then check the “None of the above” box. When considering if the rejection is reflective of the characteristic, the terms “substantially” and “reasonably” permit the reviewer to use their judgement in assessing whether taken as a whole that the characteristic is present. Checking of a characteristic box only indicates that the rejection is reflective of the characteristic and does not reflect on the accuracy or effectiveness of its use. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy. Rather, checking a characteristic box merely indicates the presence of the characteristic in the rejection.

	Characteristics of Nonstatutory Double Patenting Rejection(s)
☐	The rejection(s) addresses substantially all claims individually and only groups claims together that are of substantially similar scope (i.e. limited claim lumping)
☐	The rejection(s) reasonably pinpoints where substantially all limitations are met by the conflicting claim(s)
☐	The rejection(s) articulates a reasonable rationale for each modification individually addressing each modification with a separate rationale as appropriate
☐	Statements of patentable weight are included, particularly when patentable weight is not being given to any of the following: • Preamble • Intended use limitations • Claim language that suggests or makes optional some structure or steps
☐	The rejection(s) sets forth a claim interpretation that points out how the examiner is interpreting the claim/term/phrase for purposes of the rejection(s) (e.g. BRI, special definitions)
☐	Included detailed legal analysis of applicable legal issues through a detailed analysis of the claim(s) and the case law/policy that applies thereto
☐	Included detailed technical analysis in regards to the invention and/or the conflicting claim(s)
☐	The Office action included appropriate suggestions to overcome rejection(s) (not general FP language or indication of claims with allowable subject matter)
☐	None of the above

10. Is there an accolade related to Non-Statutory Double Patenting Rejection(s)

If any of the rejections under Nonstatutory Double Patenting were NOT in compliance or if “none of the above” is checked for the characteristics, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is

indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check "No".

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the Nonstatutory Double Patenting Rejection Made that:

MRF Compliance Questions: Other Rejections Made

1. Were all the “Other” rejection(s) in compliance?

Yes or No

If a rejection was made in the Office action being reviewed that is not otherwise covered in the MRF, the answer must be updated to either Yes or No. The determination of compliance is based on the rejection properly identifying the claim(s), the statute (including subparagraphs) and being supported by sufficient evidence to support the conclusion of obviousness of the claim(s). The statutory compliance standard and scenarios should be consulted for assistance in determining compliance.

- i. If “Yes”, go to question 4*
- ii. If “No”, select one of:*

Attention Needed or Noncompliant

2. Identify the claim(s) with non-compliant “Other” rejection(s).

Claim(s):

Each claim discussed individually as a basis for the noncompliance in an “Explanation of Noncompliance” section in addition to those dependent claims which inherit the noncompliance must be listed.

The noncompliance is directed to limitations introduced in (check only one):

- a. ☐ Only the independent claim(s)**
- b. ☐ Only the dependent claim(s)**
- c. ☐ Both the independent claim(s) and dependent claim(s)**

This question is not to capture the type of claims held noncompliant, but rather to identify the type of claim which is the root of the noncompliance. As such, the box should be checked based on the type of claim where the basis of the noncompliance is first introduced into the claim tree. The selection of a, b, or c should be based on the claim limitation(s) identified as the basis for the noncompliance and the type of claim that the limitation originates from in the claim tree. Only one box may be selected.

Example 1:

Claim 1 is an independent claim. Claims 2-10 dependent from claim 1. The rejection of claims 1-10 is noncompliant. The noncompliance is based on a limitation that is first introduced in the

claim tree in independent claim 1. Claims 2-10 inherit the noncompliance through their dependency. In this situation, the noncompliance is directed to limitations introduced only in the independent claim, so box (a) should be checked.

Example 2:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-5 are compliant. The rejection of claim 6 is noncompliant. The noncompliance is based on a limitation recited in claim 6 and thus originates in the claim tree from a dependent. In this situation, the noncompliance is directed to limitations introduced only in the dependent claim, so box (b) should be checked.

Example 3:

Claim 1 is independent and claims 2-6 are dependent on claim 1. The rejections of 1-6 are noncompliant. The noncompliance is based on a limitation originating in the claim tree in independent claim 1 and additionally for a limitation which originates from dependent claim 6. In this situation, the noncompliance is directed to limitations introduced both in the independent claim and the dependent claim, so box (c) should be checked.

3. Explanation of “Other” Noncompliance:

The reviewer should explain the basis for the noncompliance related to the identification of the claim(s) and/or statute. The write up should avoid rhetorical questioning. The write up should not be personalized, but an assessment of the work product.

4. Other Rejection(s) Comments (suggestions, feedback, best practices, etc.):

Comments made here should not be directed to any basis of a noncompliance. The reviewer may include any suggestions or feedback they believe would benefit the examiner, but all issues related to the holding of non-compliance should be provided in Question 3. The reviewer may comment on best practices that the examiner may want to consider when making the rejection. Providing suggestions, feedback and comments on best practices is optional here.

Omitted Rejections

The allowance (or non-rejection) of a claim is statutorily compliant as long as the Office did not omit a statutorily compliant rejection. A proposed omitted rejection can be made when a claim: a) was indicated as allowed or allowable; or b) was not rejected.

When a rejection made is easily overcome (e.g. swear behind, by invoking exceptions under 35 USC 102(b)(1) or 102 (b)(2)), the reviewer should not propose an omitted rejection but instead may propose a back-up rejection for TC consideration. See question 45 (other quality issues) of this MRG Guidance document for further guidance.

MRF Omitted Rejection: 35 USC 102

A claimed invention should have been rejected under 35 U.S.C. 102 when the invention is anticipated (or is “not novel”) over a disclosure that is available as prior art. To reject a claim as anticipated by a reference, the disclosure must teach every element required by the claim under its broadest reasonable interpretation.

1. Identify the claim(s) where a rejection under 35 USC 102 was omitted:

List each claim for which an omitted rejection under 35 USC 102 is proposed which is the basis for the noncompliant. Do not list claims that have a compliant rejection even if covered by the omitted rejection. Each claim listed must be specifically addressed in the text box under Question 4 “Give a thorough description of the omitted rejection(s)”.

Example:

Claim 1 is rejected as anticipated by Jones. Claim 2 dependent on claim 1 is objected to as containing allowable subject matter. The reviewer finds that the rejection of claim 1 is compliant. The reviewer also finds a reference (Jones) which anticipates both claims 1 and 2. Since claim 1 has a compliant art rejection, only claim 2 should be listed since it is the basis for the noncompliance

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. Identify Reference(s) relied on in the omitted Rejection:

Complete for each reference applied in an omitted 102 rejection. Columns “Name”, “Found by” and “Reference type” must be completed. Columns “Document Identifier” and “US(First) CPC Classification Symbol” must be completed if the reference is a US patent document. The “US(First) CPC Classification Symbol” can be found using the [Classification Allocation Tool \(or CAT Tool\)](#) and locating the CPC symbol in the “Allocated By” column designated as US(F). If reference is an NPL or other type of document that does not have a US(First) CPC Classification Symbol, then that columns may be left blank. The Document Identifier column can be used to provide bibliographical information for NPL documents. Look to MPEP 707.05(e) for guidance for data necessary for citing these types of references.

When selecting an item under “Found by”, if the reference is of record either “892” or “1449” these should be selected even if the reviewer was led to the reference by some other source. For example, the reviewer may have found the reference in their search or an international search report and then realized it is also of record. The reviewer should not select “Reviewer Search” or “Other”, but rather “892” or “1449” should be selected. The reviewer search or other mechanism that also revealed the reference may be noted under the Search/Prior Art section of the review form.

	Name (e.g. Smith)	Document Identifier (e.g. patent number)	US(F) CPC Classification Symbol	Found by:	Reference Type
A				Drop down to select one of: Reviewer Search, 892, 1449, Other	Drop down to select one of: US Patent/PGPub, Foreign Patent/Appln, NPL, or Other
B					
C					

3. If reference was found by Reviewer Search or Other, provide the search string, if available, or a detailed explanation of how and where the reference was located:

For all references not of record in an 892 or 1449 and applied in the omitted 102 rejection, an explanation of how the reference was located by the reviewer should be provided. If found in a Reviewer Search and not also of record, provide all search logic, including all search strings and an indication of where the reference was ultimately found, either in a specific search string or specific classification search performed by the Reviewer. If found in a different manner and not of record in an 892 or 1449 provide an appropriate explanation such as, for example, directing attention to an ISA document, Background of the Invention section of the specification, parent application, etc.

4. Give a thorough description of the omitted rejection(s):

A complete proposed rejection for each of the claim(s) listed in Question 1 above must be provided. In addition, for each claim the statute, sub paragraph and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the prior art applied anticipates the claimed invention.

MRF Omitted Rejection: 35 USC 103

A claimed invention should have been rejected under 35 U.S.C. 103 when the invention is obvious subject matter. To support the conclusion that the claimed invention should have been rejected as directed to obvious subject matter, the proposed rejection should articulate a prima facie case of obviousness. Findings of fact should be supported by sufficient evidence in the prior art. The rejection should articulate how the prior art is to be modified to arrive at the claimed invention. The reasoning/rationale should be taught by the prior art applied or provided by the reviewer in a convincing line of reasoning as to why the artisan would have found the claimed invention to have been obvious in light of the teachings of the prior art applied.

1. Identify the claim(s) where a rejection under 35 USC 103 was omitted

List each claim for which an omitted rejection under 35 USC 103 is proposed which is the basis for the noncompliant. Do not list claims that have a compliant rejection even if covered by the omitted rejection. Each claim listed must be specifically addressed in the text box under Question 4 "Give a thorough description of the omitted rejection(s)".

Example:

Claim 1 is rejected as anticipated by Jones in view of Smith. Claim 2 dependent on claim 1 is objected to as containing allowable subject matter. The reviewer finds that the rejection of claim 1 is compliant. The reviewer also finds a combination (Hoover in view of Nguyen) which would make obvious both claims 1 and 2. Since claim 1 has a compliant art rejection, only claim 2 should be listed since it is the basis for the noncompliance

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. Identify Reference(s) relied on in the omitted Rejection:

Complete for each reference applied in an omitted 103 rejection. Columns “Name”, “Found by” and “Reference type” must be completed. Columns “Document Identifier” and “US(First) CPC Classification Symbol” must be completed if the reference is a US patent document. The “US(First) CPC Classification Symbol can be found using the Classification Allocation Tool (or CAT Tool) and locating the CPC symbol in the “Allocated By” column designated as US(F). If reference is an NPL or other type of document that does not have a US(First) CPC Classification Symbol, then that columns may be left blank. The Document Identifier column can be used to provide bibliographical information for NPL documents. Look to MPEP 707.05(e) for guidance for data necessary for citing these types of references.

When selecting an item under “Found by”, if the reference is of record either “892” or “1449” these should be selected even if the reviewer was led to the reference by some other source. For example, the reviewer may have found the reference in their search or an international search report and then realized it is also of record. The reviewer should not select “Reviewer Search” or “Other”, but rather “892” or “1449” should be selected. The reviewer search or other mechanism that also revealed the reference may be noted under the Search/Prior Art section of the review form.

	Name (e.g. Smith)	Document Identifier (e.g. patent number)	US (F) CPC Classification Symbol	Found by:	Reference Type
A				Drop down to select one of: Reviewer Search, 892, 1449, Other	Drop down to select one of: US Patent/PGPub, Foreign Patent/Appln, NPL, or Other
B					
C					

3. If reference was found by Reviewer Search or Other, provide the search string, if available, or a detailed explanation of how and where the reference was located:

For all references not of record in an 892 or 1449 and applied in the omitted 103 rejection, an explanation of how the reference was located by the reviewer should be provided. If found in a Reviewer Search and not also of record, provide all search logic, including all search strings and an indication of where the reference was ultimately found, either in a specific search string or specific classification search performed by the Reviewer. If found in a different manner and not of record in an 892 or 1449 provide an appropriate explanation such as, for example, directing

attention to an ISA document, Background of the Invention section of the specification, parent application, etc.

4. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the prior art supports the conclusion of obviousness.

MRF Omitted Rejection: 35 USC 112(a) Enablement

A claimed invention should have been rejected under 35 U.S.C. 112(a) Enablement if the disclosure, when filed, does not contain sufficient information regarding the subject matter of the claims as to enable one skilled in the pertinent art to make and use the claimed invention.

1. Identify the claim(s) where a rejection under 35 USC 112(a) Enablement was omitted

List each claim for which an omitted rejection under 35 USC 112(a) Enablement is proposed, including dependent claims which inherit the deficiencies of the claims from which they depend, which is the basis for the noncompliant. Each claim listed must be specifically addressed in the text box under Question 3 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. The omitted 35 USC 112(a) Enablement rejection is directed to (check all that apply):

Check at least one of boxes 2a-c below if appropriate. Check box d if none of boxes 2a-c apply.

- a. ☐ 112(a) Enablement related to 112(f)
- b. ☐ Insufficient reference to a deposit of biological material.
- c. ☐ Dependent claim(s) which inherit the deficiencies raised with regard to claim(s) rejected under 112(a) Enablement which were not included in the rejection

Check this box if the omitted rejection(s) was due to a dependent claim(s) which inherit the deficiencies for which the claim it depends on was rejected, but was not included in the rejection. For example, the rejection of claim 1 was determined to be noncompliant. Claim 2 depends on claim 1. By its dependency on claim 1, the issue raised is also present in claim 2. As such, claim 2 should have been rejected on the same grounds as claim 1.

d. ☐ None of the above

3. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the disclosure, when filed, does not contain sufficient information regarding the subject matter of the claims as to enable one skilled in the pertinent art to make and use the claimed invention without undue experimentation.

MRF Omitted Rejection: 35 USC 112(a) Written Description

A claimed invention should have been rejected under 35 U.S.C. 112(a) Written Description if there is not sufficient written description to inform a skilled artisan that the applicant was in possession of the claimed invention as a whole at the time the application was filed. With respect to newly added or amended claims, applicant should show support in the original disclosure for the new or amended claims.

1. Identify the claim(s) where a rejection under 35 USC 112(a) Written Description was omitted

List each claim for which an omitted rejection under 35 USC 112(a) Written Description is proposed, including dependent claims which inherit the deficiencies of the claims from which they depend, which is the basis for the noncompliant. Each claim listed must be specifically addressed in the text box under Question 3 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. The basis for the omitted rejection(s) under 35 USC 112(a) Written Description is directed to: (check all that apply):

Check at least one of boxes 2(a-f) below if appropriate. Check box 2(g) if none of boxes 2(a-f) apply.

- a. ☐ New matter
- b. ☐ Original Claims
- c. ☐ 112(a) Written Description rejection related to 112(f)
- d. ☐ Lack of sufficient algorithm for a computer implemented invention.

e. ☐ Insufficient reference to a deposit of biological material.

f. ☐ Dependent claim(s) which inherit the deficiencies raised with regard to claim(s) rejected under 112(a) Written Description which were not rejected.

Check this box if the omitted rejection(s) was due to a dependent claim(s) which inherit the deficiencies for which the claim it depends on was rejected, but was not included in the rejection. For example, the rejection of claim 1 was determined to be noncompliant. Claim 2 depends on claim 1. By its dependency on claim 1, the issue raised is also present in claim 2. As such, claim 2 should have been rejected on the same grounds as claim 1.

g. ☐ None of the above

3. **Give a thorough description of the omitted rejection(s):**

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the disclosure is not sufficient to inform a skilled artisan that the applicant was in possession of the claimed invention as a whole at the time the application was filed.

MRF Omitted Rejection: 35 USC 112(b)

A claimed invention should have been rejected under 35 U.S.C. 112(b) when the claims do not particularly point out and distinctly claim that which the inventor or a joint inventor regards as the invention.

1. Identify the claim(s) where a rejection under 35 USC 112(b) was omitted:

List each claim for which an omitted rejection under 35 USC 112(b) is proposed, including dependent claims which inherit the deficiencies of the claims from which they depend, which is the basis for the noncompliant. Each claim listed must be specifically addressed in the text box under Question 3 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. The basis for the omitted rejection(s) under 35 USC 112(b) is (check all that apply):

Check at least one of boxes 2(a-i) below if appropriate. Check box 2j if none of boxes 2(a-i) apply.

- a. ☐ Relative terminology
- b. ☐ Ranges and amounts limitations
- c. ☐ Exemplary language (e.g. “for example”, “such as”, etc.)
- d. ☐ Lack of antecedent basis
- e. ☐ Alternative limitations (e.g. a Markush group)
- f. ☐ Unclaimed/Omitted essential subject matter
- g. ☐ 112(b) is related to 112(f)
- h. ☐ Unbounded functional claiming
- i. ☐ Dependent claims which inherit the deficiencies raised with regard to claims rejected under 112(b) which were not rejected

Check this box if the omitted rejection(s) was due to a dependent claim(s) which inherit the deficiencies for which the claim it depends on was rejected, but was not included in the rejection. For example, the rejection of claim 1 was determined to be noncompliant. Claim 2 depends on claim 1. By its dependency on claim 1, the issue raised is also present in claim 2. As such, claim 2 should have been rejected on the same grounds as claim 1.

- j. ☐ Other:

3. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the claims do not particularly point out and distinctly claim that which the inventor or a joint inventor regards as the invention.

MRF Omitted Rejection: 35 USC 112(d)

A claimed invention should have been rejected under 35 U.S.C. 112(d) as being directed to an improper dependent claim when the claim contains a reference to a previous claim and does not specify a further limitation of the subject matter of the previous claim and include all the limitations of the previous claim.

1. Identify the claim(s) where a rejection under 35 USC 112(d) was omitted:

List each claim for which an omitted rejection under 35 USC 112(d) is proposed, including dependent claims which inherit the deficiencies of the claims from which they depend. Each claim listed must be specifically address in the text box under Question 2 “Give a thorough description of the omitted rejection(s)”.

2. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how dependent claim(s) do not specify a further limitation of the subject matter of the previous claim and include all the limitations of the previous claim.

MRF Omitted Rejection: 35 USC 101 Subject Matter Eligibility

A claimed invention should have been rejected under 35 U.S.C. 101 if it is not directed to one of the four statutory categories (process, machine, manufactures, composition of matter) or if the claim is directed to a judicial exception and the claim as a whole does not include additional limitations amounting to significantly more than the exception.

1. Identify the claim(s) where a rejection under 35 USC 101 Subject Matter Eligibility was omitted:

List each claim for which an omitted rejection under 35 USC 101 Subject Matter Eligibility is proposed. Each claim listed must be specifically addressed in the text box under Question 3 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. Basis for the omitted rejection(s) under 35 USC 101 SME (check all that apply):

Check at least one of box 2(a) and 2(b).

a. ☐ Claim(s), as a whole, fails under Step 1:

If box 2(a) is checked, check at least one of boxes 2(a)(1-5). Check box 3(a)(6) if none of boxes 3(a)(1-5) apply and complete comment box to identifying why the claim(s) fail under step 1.

1. ☐ Transitory Signal/Signal per se
2. ☐ Program/Software per se
3. ☐ Human Organism
4. ☐ Use Claim
5. ☐ Information/data per se
6. ☐ Other:

b. ☐ Claim(s), as a whole, fails under Step 2 :

If box 2(b) is checked then at least one of 2(b)(1)a -d AND at least one of 2(b)(2)(a-e) AND at least one of 2(b)(3)(a-e) must be checked.

1. The claim(s) recites a judicial exception (Step 2A, Prong 1):

- a. ☐ Product of nature (based on the results of the Markedly Different Characteristics analysis)
- b. ☐ Law of Nature
- c. ☐ Natural Phenomenon (other than products of nature)
- d. ☐ Abstract Idea

If 2(b)(1)(d) is checked then at least one of 2(b)(1)(d)(I-IV) must be checked.

- I. ☐ Mathematical Concept
- II. ☐ Certain methods of organizing human activity
- III. ☐ Mental Process
- IV. ☐ Tentative Abstract Idea – Claim should have been treated according to Section III(C) of the 2019 Revised Patent Subject Matter Eligibility Guidance (requires OPQA director approval)

2. The claim(s) fails to integrate the judicial exception into the practical application (Step 2A, Prong 2) because:

- a. ☐ There are no additional elements in the claim.
- b. ☐ The additional element(s) merely recites the word “apply it” (or an equivalent) with the judicial exception, or merely includes instructions to implement an abstract idea on a computer, or merely use a computer as a tool to perform an abstract idea.
- c. ☐ The additional element(s) adds insignificant extra-solution activity to the judicial exception.
- d. ☐ The additional element(s) does no more than generally link the use of the judicial exception to a particular technological environment or field of use.
- e. ☐ Other:

If box 2(b)(2)(e) is checked, then the comment box must be completed explaining how the claims fail to integrate the judicial exception into the practical application in a way not described under one of boxes 2(b)(2)(a-d).

3. The claim(s) does not provide an inventive concept (i.e. the additional elements of the claim(s) do not amount to significantly more than the judicial exception itself; Step 2B) because:

- a. ☐ There are no additional elements in the claim(s).
- b. ☐ The additional element(s) merely recites the words “apply it” (or an equivalent) with the judicial exception, or merely includes instructions to implement an abstract idea on a computer, or merely use a computer as a tool to perform an abstract idea.
- c. ☐ The additional element(s) adds insignificant extra-solution activity to the judicial exception.
- d. ☐ The additional element(s) does no more than generally link the use of the judicial exception to a particular technological environment or field of use.
- e. ☐ The additional element(s) simply appends well-understood, routine, conventional activities previously known to the industry, specified at a high

level of generality, to the judicial exception. This rationale is supportable in accordance with the *Berkheimer* Memorandum based on:

If 2(b)(3)(e) is checked then at least one of 2(b)(3)e(i-iv) must be checked.

- i. ☐ Statement by Applicant
- ii. ☐ Court Decision in MPEP 2106.05(d)(II)
- iii. ☐ Publication
- iv. ☐ Official Notice

3. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of why the claims are not patent eligible.

MRF Omitted Rejection: 35 USC 101 Utility

A claimed invention should have been rejected under 35 U.S.C. 101 Utility when there is no assertion of a specific and substantial credible utility for the claimed invention made by the applicant, and the claimed invention does not have readily apparent well-established utility.

1. Identify the claim(s) where a rejection under 35 USC 101 Utility was omitted:

List each claim for which an omitted rejection under 35 USC 101 Utility is proposed. Each claim listed must be specifically address in the text box under Question 2 “Give a thorough description of the omitted rejection(s)”.

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the claims lack utility.

MRF Omitted Rejection: 35 USC 101 Statutory Double Patenting

A claimed invention should have been rejected under 35 U.S.C. 101 Statutory Double Patenting when the claimed invention is directed to the same invention (identical subject matter) that is claimed in a patent or co-pending application which has at least one common inventor, common assignee, common applicant or under a Joint Research Agreement.

- 1. Identify the claim(s) where a rejection under 35 USC 101 Statutory Double Patenting was Omitted:**

List each claim for which an omitted rejection under 35 USC 101 Statutory Double Patenting is proposed. Each claim listed must be specifically address in the text box under Question 6 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

- 2. The basis for the omitted rejection(s) under 35 USC 101 Statutory Double Patenting is:**

Must check at least one of 2(i) or 2(ii).

- i. ☐ Provisional
- ii. ☐ Non-provisional

- 3. Identify the Conflicting Patent/Application relied on in the omitted rejection(s):**

All of the columns are mandatory and must be completed for the US patent and/or application relied on as the basis for the omitted 35 USC 101 Statutory Double Patenting rejection. The

“US(First) CPC Classification Symbol can be found using the Classification Allocation Tool (or CAT Tool) and locating the CPC symbol in the “Allocated By” column designated as US(F).

When selecting an item under “Found by”, if the reference is of record either “892” or “1449” these should be selected even if the reviewer was led to the reference by some other source. For example, the reviewer may have found the reference in their search or an international search report and then realized it is also of record. The reviewer should not select “Reviewer Search” or “Other”, but rather “892” or “1449” should be selected. The reviewer search or other mechanism that also revealed the reference may be noted under the Search/Prior Art section of the review form.

When entering the document identifier, the US Patent and/or US Application, the numbers must be in the proper format in order to validate. US Patents must be in the following format which included the commas: “12,345,678”. US Patent Applications must be in the following format which includes both the comma and slash symbol: “12/345,678”.

If the type of conflicting document entered in the table does not agree with the basis for the rejection being provisional or non-provisional, a validation error will occur and a red exclamation point will be visible. Hovering over the red exclamation point will offer guidance to correcting the inconsistency.

	Name (e.g. Smith)	Document Identifier (i.e., patent or application number)	US (F) Classification Symbol	Found by:
A				Drop down to select one of: Reviewer Search, 892, 1449, ISA, Other
B				
C				

4. **If reference was found by Reviewer Search or Other, provide the search string, if available, or an explanation of how and where the reference was located:**

For all references not of record in an 892 or 1449 and applied in the omitted 103 rejection, an explanation of how the reference was located by the reviewer should be provided. If found in a Reviewer Search and not also of record, provide all search logic, including all search strings and an indication of where the reference was ultimately found, either in a specific search string or specific classification search performed by the Reviewer. If found in a different manner and not of record in an 892 or 1449 provide an appropriate explanation such as, for example, directing

attention to an ISA document, Background of the Invention section of the specification, parent application, etc.

5. **The omitted rejection is based on a rejection previously made during prosecution and improperly withdrawn in response to the filing of a Terminal Disclaimer (TD)?**

Must answer Yes or No

Yes or No

6. **Give a thorough description of the omitted rejection(s):**

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the claims are directed to identical subject matter in the conflicting patent or application.

MRF Omitted Rejection: Nonstatutory Double Patenting

A claimed invention should have been rejected under Nonstatutory Double Patenting when the claimed invention is directed to an invention that is not patentably distinct from an invention claimed in a patent or co-pending application which has at least one common inventor, common assignee, common applicant or under a Joint Research Agreement.

1. Identify the claim(s) where a rejection under Non-statutory Double Patenting was omitted:

List each claim for which an omitted rejection under NonStatutory Double Patenting is proposed. Each claim listed must be specifically address in the text box under Question 6 "Give a thorough description of the omitted rejection(s)".

The omitted rejection(s) is directed to:

Check the appropriate box based on the claims identified in Question 1. If the omitted rejection(s) applies to an independent claim only check box 1(a), a dependent claim only check box 1(b), or to both independent and dependent claims check box 1(c).

- a. ☐ Only the independent claim(s)
- b. ☐ Only the dependent claim(s)
- c. ☐ Both the independent claim(s) and dependent claim(s)

2. The basis for the omitted rejection(s) under Nonstatutory Double Patenting is (check all that apply):

At least one of 2(i) and 2(ii) must be checked AND at least one of 2(III) and 2(iv) must be checked.

- a. ☐ Provisional
- b. ☐ Non-provisional

3. The type of omitted rejection(s) under Nonstatutory Double Patenting is (check all that apply):

- a. ☐ Anticipatory Type
- b. ☐ Obviousness Type

4. Identify Conflicting Patent/Applications and any Modifying Reference(s) relied on in the omitted Rejection

Select for each reference applied in the omitted Nonstatutory Double Patenting rejection, whether it is being applied as the conflicting patent/application or a modifying reference in the "Type Column". "Name", "Found by" and "Reference type" must be completed for all entry types. Columns "Document Identifier" and "US(First) CPC Classification Symbol" must be completed if the reference is a US patent document. The "US(First) CPC Classification Symbol" can be found using the [Classification Allocation Tool \(or CAT Tool\)](#) and locating the CPC symbol in the "Allocated By" column designated as US(F). If a modifying reference is an NPL or other type of document that does not have a US(First) CPC Classification Symbol, then that column may be left blank. The Document Identifier column can be used to provide bibliographical information for NPL documents. Look to MPEP 707.05(e) for guidance for data necessary for citing these types of references.

When selecting an item under "Found by", if the reference is of record either "892" or "1449" these should be selected even if the reviewer was led to the reference by some other source. For example, the reviewer may have found the reference in their search or an international search report and then realized it is also of record. The reviewer should not select "Reviewer Search" or "Other", but rather "892" or "1449" should be selected. The reviewer search or other mechanism that also revealed the reference may be noted under the Search/Prior Art section of the review form.

When entering the document identifier for US Patent and/or US Application, the numbers must be in the proper format in order to validate. US Patents must be in the following format which included the commas: "12,345,678". US Patent Applications must be in the following format which includes both the comma and slash symbol: "12/345,678".

If the type of conflicting document entered in the table does not agree with the basis for the rejection being provisional or non-provisional, a validation error will occur and a red exclamation point will be visible. Hovering over the red exclamation point will offer guidance to correcting the inconsistency.

	Type:	Name (e.g. Smith)	Document Identifier (e.g., patent number; application number)	US (F) CPC Classification Symbol	Found by:	Reference Type
A	Drop down to select one of: Conflicting Patent/Application or Modifying Reference				Drop down to select one of: Reviewer Search, 892, 1449, ISA, Other	Drop down to select one of: US Patent/PGPub, Foreign Patent/Appln, NPL, or Other
B						
C						

5. If reference was found by Reviewer Search or Other, provide the search string, if available, or an explanation of how and where the reference was located:

For all references not of record in an 892 or 1449 and applied in the omitted 103 rejection, an explanation of how the reference was located by the reviewer should be provided. If found in a Reviewer Search and not also of record, provide all search logic, including all search strings and an indication of where the reference was ultimately found, either in a specific search string or specific classification search performed by the Reviewer. If found in a different manner and not of record in an 892 or 1449 provide an appropriate explanation such as, for example, directing attention to an ISA document, Background of the Invention section of the specification, parent application, etc.

6. The omitted rejection is based on a rejection dropped during prosecution based on the filing of a terminal disclaimer (TD) which was not accepted by the Office?

Must answer Yes or No

Yes or No

7. Give a thorough description of the omitted rejection(s):

In this box, the reviewer must provide a complete proposed rejection for each of the claim(s) listed in Question 1 above. In addition, for each claim the statute and evidence supporting the rejection must be clearly identified. The proposed rejection should not be personalized, and should reflect a thorough analysis of how the claims are directed to subject matter not patentably distinct from that claimed in the conflicting patent or co-pending application.

MRF Office Action Characteristics: Characteristics of Immediate Prosecution

Clarification of “Immediate Prosecution”: Unless otherwise indicated in the notes below or expressly in the language of the question, all characteristics listed below should be captured with respect to only the instant office action under review.

Allowable Subject Matter

1. Did the examiner indicate allowable subject matter?

This question should only be answered “Yes” when the examiner affirmatively either allows a claim or indicates a claim as containing allowable subject matter, including all allowances. “Yes” should not be checked if the examiner simply does not reject or otherwise address a claim. If all claims are either rejected under a statutory basis or simply not addressed, check “No”.

Yes or No

i. If “Yes”, continue to question 2

ii. If “No”, go to MRF Office Action Characteristics: Response to Applicant section

2. Was rejoinder properly practiced?

Yes or No or N/A

Answer “Yes” when a restriction requirement was made on the record and rejoinder practice (either rejoining or not rejoining claims) was properly applied in accordance with MPEP 821.04.

Answer “No” if rejoinder practice was not properly applied, including but not limited to failure to notice applicant (e.g., using form paragraph 8.46, 8.47 or 8.47.01 as appropriate per MPEP 821.04(a)). If ‘No’, provide details in the comment box for question 4.

Answer “N/A” if no restriction requirement was made (or one was made and previously withdrawn).

3. Is a reason for allowance present?

When answering this question, the reviewer should consider whether a reasons for allowance (i.e., an explanation for how the claims distinguish over the prior art) is present in the instant Office action.

Yes or No

If “Yes”,

a. Did the reasons for allowance add substance to the record?

Yes or No

4. Allowable Subject Matter Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner. The reviewer may comment on best practices that the examiner may want to consider. Suggestions, feedback and comments on best practices are optional here.

5. Check all that apply regarding Allowable Subject Matter:

These boxes represent characteristics or best practices that are exemplified when an examiner indicates allowable subject matter. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy or correctly applied. Rather, checking a box merely indicates the presence of the characteristic and not the effectiveness of its application.

	Allowable Subject Matter
☐	The Office action identifies the specific allowable subject matter and also demonstrates how the prior art teachings neither anticipate nor render obvious the allowable subject matter in combination with the other claimed limitations <i>Check this box only when specific allowable subject matter is identified and there is an explanation as to how the prior art teachings neither anticipate nor render obvious the allowable subject matter.</i>
☐	An Examiner’s Amendment was completed to place the case in condition for allowance
☐	The Office action cites pertinent arguments by the applicant that were persuasive in overcoming a previous rejection
☐	The Office action cites any newly discovered prior art providing a brief description directed to why it was cited but not applied
☐	The Reasons for Allowance addresses each independent claim separately
☐	None of the above

6. Is there an accolade related to Allowable Subject Matter?

If “none of the above” is checked above, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to Allowable Subject Matter that:

Response to Applicant

These questions are available in reviews of all office action types, including final rejections, non-final rejections AND allowances.

7. Were any applicant arguments present?

When answering this question, the reviewer should consider whether any arguments have been presented between the time of the last Office action and the instant Office action being reviewed.

Yes or No

i. If “Yes” continue to question 8

ii. If “No”, go to MRF Office Action Characteristics: Interviews section

8. Were any applicant arguments present that were directed to the traversal of a requirement for restriction/election?

Yes or No

9. Were all arguments presented by the applicant addressed?

There is no requirement that the response was explicit in the Office action to answer “Yes”. Explicit treatment of arguments is captured under the first characteristic in question 11.

Answer “Yes” when the arguments have been considered and the action modified in response. In situations where an argument was made and the rejection was (a) dropped, (b) now moot (e.g. new grounds of rejection; application allowed), or (c) responded to in the body of the rejection, the question should be answered “Yes”.

If an argument still applies to the new grounds of rejection, such as to an applied claim interpretation or a reference still relied on for an argued teaching, these arguments must be addressed. If the still applicable arguments are not addressed, answer “No”.

Whenever “No” is selected, the arguments which are believed to have not been addressed must be listed in the associated comment box. It is not appropriate to answer “No” and not provide an explanation.

Yes or No

If “No”, identify which arguments which were not addressed:

List each specific argument that was not addressed by the examiner.

10. Response to Applicant Comments (suggestions, feedback, best practices, etc.):

*The reviewer may include any suggestions or feedback they believe would benefit the examiner.
The reviewer may comment on best practices that the examiner may want to consider.
Suggestions, feedback and comments on best practices are optional here.*

11. Check all that apply regarding the Response to Applicant:

These boxes represent characteristics or best practices that are exemplified when an examiner responds to arguments. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the "None of the above" box. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy or correctly applied. Rather, checking a box merely indicates the presence of the characteristic and not the effectiveness of its application.

	Response to Applicant
☐	The Office action identifies and addresses all arguments raised by applicant <i>This characteristic box should be checked when the Office action explicitly identifies and addresses the arguments. This box is distinct from question 9 since here there needs to be explicit treatment of the arguments in the Office action.</i>
☐	The Office action specifically states which arguments are persuasive and whether the related rejections are withdrawn
☐	The Office action specifically states which arguments are not persuasive along with a concise explanation of the rationale why
☐	The Office action acknowledges all submission of evidence (e.g. affidavits) and provides explanations directed to why the evidence was not found persuasive
☐	None of the above

12. Is there an accolade related to Response to Applicant?

If “none of the above” is checked above, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the Response to Applicant that:

Interviews

13. Is there evidence of an interview on the record?

When considering whether there is evidence of an interview, the reviewer should look at the time period between the last Office action of record and the Office action indicated for the instant review. If the review is the first Office action in prosecution, the time period would start from the filing of the application to the Office action indicated for the instant review. The review should be limited its evaluation to those interviews within this period of time.

Evidence of an interview may be realized by an interview summary form, or a statement made by either applicant or the examiner to the effect that an interview or other type of discussion was held. If there is any evidence of an interview being held, check "Yes"; otherwise, check "No".

Yes or No

i. If "Yes", continue to question 14

ii. If "No", go to MRF Office Action Characteristics: Examiner Search/Prior Art section

14. Was an Interview Summary form present?

Yes or No

15. The interview was (check all that apply):

- ☐ Examiner initiated
- ☐ Applicant initiated
- ☐ In person
- ☐ Telephonic
- ☐ Video/Webex
- ☐ Unknown

16. Interview Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner.

The reviewer may comment on best practices that the examiner may want to consider.

Suggestions, feedback and comments on best practices are optional here.

17. Check all that apply regarding the Interview:

These boxes represent characteristics or best practices that are exemplified when an examiner responds to arguments. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the “None of the above” box. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy or correctly applied. Rather, checking a box merely indicates the presence of the characteristic and not the effectiveness of its application.

	Interview Recordation
☐	The recordation of the interview makes clear whether proposed amendments were submitted for consideration and whether they overcome the prior art of record
☐	The recordation of the interview identifies specific arguments or proposed amendments raised during the interview
☐	The recordation of the interview provides an indication of which arguments/proposed amendments overcome which issues, whether raised by the examiner in the office action or in the interview, and next steps to be taken
☐	There is evidence that claim amendments were made as a direct result of examiner suggestions from the interview
☐	The current Office action contains decisions consistent with the recordation of the interview
☐	None of the above

18. Is there an accolade related to Interview Recordation?

If “none of the above” is checked above, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the Interview Recordation that:

Examiner Search/Prior Art

19. Was a record of a search being performed present in the record?

Yes or No

When considering this question, the entire record for the instant application should be considered.

If "Yes", continue to Question 20

If "No", go to MRF Reviewer Search section

20. Is there any search present performed in conjunction with the instant Office action under review (e.g. update; new search)?

Yes or No

If Yes, continue to Question 21

If No, go to Question 22

21. Did this search reflect adjustments based on amendments?

Yes, No, NA

22. Was an IFW Search Notes Form present in the record?

Yes or No

23. Was a Search Print Out present in the record?

Yes or No

24. Was a Similarity Search present in the record?

Yes or No

When considering the entire file wrapper for a record of a search being performed, the reviewer must indicate whether or not the required similarity search was conducted by answering 'Yes' or 'No'.

If a similarity search for the application under review is identified in the search documentation, either in a search print-out or search notes, select 'Yes'. If the record reflects a similarity search for the application was attempted, but the search failed, select 'Yes'.

If a similarity search is not identified in the search documentation, either in a search print-out or search notes, select 'No'. If a similarity search is identified for a different application number, select 'No' and provide an explanation in the comment box for question 25.

25. Search/Prior Art Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner. The reviewer may comment on best practices that the examiner may want to consider. Suggestions, feedback, and comments on best practices are optional here.

26. Check all that apply:

These boxes represent characteristics or best practices that are exemplified in an examiner's prior art search. The reviewer should check all boxes that apply to the office action reviewed. If none of the best practices apply, then check the "None of the above" box. For a characteristic to be indicated as present, it does not require that it was applied in a manner that makes it accolade worthy or correctly applied. Rather, checking a box merely indicates the presence of the characteristic and not the effectiveness of its application.

	Search/Prior Art
☐	The search includes the inventive concept. <i>Assume that the applicant's claims are directed to the invention. Unless the search is completely off base, this would be checked. If the search doesn't cover the claimed invention, then do not check and provide an explanation of what is missing.</i>
☐	There is evidence present of consultation with experts.

☐	Prior art was cited on the record which was pertinent to significant unclaimed features of the disclosed invention. <i>Check this if there is additional art cited by the examiner that was not applied to the claims.</i>
☐	A brief description was provided for relevant prior art cited but not applied. <i>Check this if there is additional art cited by the examiner that was not applied to the claims AND there is an explanation of the relevance.</i>
☐	The search print out includes designations of which result sets were reviewed. (MPEP 719.05(II)(B))
☐	None of the above

27. Is there an accolade related to Search/Prior Art?

If “none of the above” is checked above, then this question will not be available and an accolade should not be proposed. When this question is available, the reviewer should check “Yes” if the rejection(s) meet the criteria for an accolade as established. The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Complete the following sentence:

Specifically, the OPQA reviewer commented with regard to the Search/Prior art that:

Reviewer Search

28. Did the reviewer perform a search?

In all regular random reviews, a reviewer should make an independent decision whether or not to perform any kind of search for that review based on their professional judgement and experience taking into account their assessment of the prosecution record including the recorded examiner search, prior art of record, claim interpretation made of record and/or breadth of claims. If the reviewer performed any type of search whatsoever, then Yes should be checked and the reviewer's entire search history should be provided. The search history should include a complete history of all search parameters, including but not limited to a listing of databases searched and search logic for each database.

The assessment of prior art available through the prosecution record will not be considered a Reviewer Search even though a search tool may be utilized to access the reference.

Yes or No

If Yes, the reviewer search included (check all that apply):

- ☐ CPC Search
- ☐ Keyword Search
- ☐ Inventor/Assignee Search
- ☐ NPL
- ☐ Forward/Backwards Search
- ☐ Sequence Search
- ☐ Other:

Provide search history:

112(f) Analysis

29. As the reviewer, performing your own 3-prong analysis (MPEP 2181(I)), do you find that any claim limitations invoke 112(f)?

Yes or No

This question should be answered based on the reviewer's findings applying the three-prong analysis.

30. Does the record include any statements regarding the Examiner's determination with regard to 112(f) being invoked or not being invoked?

Yes or No

- i. If "Yes" continue to question 31
- ii. If "No" go to question 34.

If the reviewer finds that certain claim limitations invoke 112(f) but the record does not include any statement to this regard, the reviewer should identify those limitations in the comment box for question 34. In situations where there are numerous limitations that invoke 112(f) and not reflected in the record, the reviewer may list a subset of these limitations and encourage further analysis of the claims for additional 112(f) limitations.

31. Were the 112(f) presumptions documented?

Yes or No

32. Were claim limitations identified where the 112(f) presumptions were overcome?

Yes or No

33. Looking at the Examiner's statement(s) made on the record, are all statements with regard to 112(f) being invoked or not being invoked correct?

Yes or No

The determination of compliance requires that all statements made on the record with respect to 112(f) invocation, or lack thereof, in any of the Office actions in the prosecution history, are correct.

Note that this question is not meant to capture instances where the Office action(s) failed to document the presence of 112(f)-invoking terms in the claims.

If 'No', please include an explanation in the comment box for question 34.

34. 112(f) Analysis Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner. The reviewer may comment on best practices that the examiner may want to consider. Suggestions, feedback and comments on best practices are optional here, except where indicated above.

35. Accolade related to 112(f) Analysis?

Yes or No

The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check "No".

Comments related to 112(f) Recordation for Accolade Letter. (Complete the following sentence).

Specifically, the OPQA reviewer commented with regard to the 112(f) Recordation that:

Restriction

36. Was a requirement for restriction/election present?

Yes or No

When answering this question, the reviewer should consider whether a restriction/election is presented in the instant Office action being reviewed.

If “Yes” continue to question 37

If “No” go to MRF Office Action Characteristics: Other Quality Issues section

37. Was the requirement for restriction/election proper?

Yes or No

If No (check all that apply):

- ☐ Burden not met
- ☐ Does not meet Distinctness/Independent requirements
- ☐ Wrong Practice (e.g., 371 v. US)
- ☐ Inventions should have been subjected to election by original presentation

38. Was sufficient rationale provided to support the restriction/election?

Yes or No

39. Restriction Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner.

The reviewer may comment on best practices that the examiner may want to consider.

Suggestions, feedback and comments on best practices are optional here.

40. Accolade related to Restriction?

The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Comments related to Restriction/Election Requirement for Accolade Letter. (Complete the following sentence).

Specifically, the OPQA reviewer commented with regard to the Restriction/Election Requirement that:

Other Quality Issues

41. Was the Office action generally free from typographical/grammatical errors?

Yes or No

The reviewer should answer “No” if they conclude that any of the following situations apply which can be considered typographical/grammatical in nature:

- a rejection under any statute addresses a specific claim in the body of the rejection, but the specific claim addressed in the body is not listed in the statement of rejection;*
- a cancelled claim is included in the statement of rejection;*
- an obviousness rejection under AIA 35 USC 103 includes a reference to the “time the invention was made” instead of the time of effective filing;*
- there are substantive copy/paste errors;*
- there are typographical errors in reference numbers or incorrect inventor name (of the reference);*
- there are references mentioned in the body of the rejection but not included in the statement of the rejection, or vice versa;*
- the office action is not “generally free” of errors considered typographical or grammatical in nature.*

otherwise, the reviewer should answer “Yes”.

(It should be noted that the above list is non-exhaustive of the situations that can be considered typographical/grammatical in nature. And further, the presence of these situations should not automatically be considered typographical in nature for the purposes of determining statutory compliance.)

42. Was the Office action written in a tone which is professional and courteous?

Yes or No

43. Duplicative rejections were only used for compact prosecution and were not unnecessary?

Yes or No or NA

44. Are there any other issues not described elsewhere?

No, Yes (Attention Needed) or Yes (Not Attention Needed)

This question is intended to capture issues that should be brought to the attention of the TC and which are not captured in any other section of the MRF. Issues concerning search, finality, or any other issue related to another MRF section should be addressed by the reviewer in the respective MRF section.

Check “No” when there are no other issues.

Check “Yes (**Not** Attention Needed)” needed when the action reviewed is a **non-final or final rejection** AND the issue should be brought to the attention of the TC in order to raise attention to corrections needed and other substantive issues before allowance. The specific issues raised must be listed in the “Other Quality Issues Comments” box below, examples of which include:

- typos in the claims, drawings or specification that were not addressed
- any objections to the claims, drawings or specification that should have been made by the examiner

A reviewer can also check “Yes (**Not** Attention Needed)” needed when the action reviewed is an **allowance** AND the issue should be brought to the attention of the TC but will not result in any correction needed prior to issuance of the patent. The specific issues raised must be listed in the “Other Quality Issues Comments” box below, examples of which include:

- incorrect form entry or other miscellaneous issue
- an issue observed by the reviewer in another office action that should be brought to the attention of the TC, including improper restriction, etc.
- other issues that should be brought to the attention of the TC but would not result in any correction needed prior to issuance of the patent

Check “Yes (Attention Needed) **only when the action reviewed is an **allowance** AND the TC should consider taking steps to address the issue raised in order to avoid corrections needed in an issued patent.** The specific issues raised must be listed in the “Other Quality Issues Comments” box below, examples of which include:

- substantive typos in the claims, drawings or specification that were not addressed and/or corrected prior to allowance
- other substantive objections to the claims, drawings or specification that should have been made by the examiner prior to allowance

Other Quality Issues Comments (suggestions, feedback, best practices, etc.):

The reviewer may include any suggestions or feedback they believe would benefit the examiner. The reviewer may comment on best practices that the examiner may want to consider. Suggestions, feedback and comments on best practices are optional here.

45. Any proposed back up prior art rejection(s) for claims that already have a compliant prior art rejection (e.g. easily invoked exception)?

Note: This question is disabled for allowances.

Answering “Yes” to this question should be limited to the rare situation where the reviewer feels it is worth raising a proposed back up prior art rejection AND when the claim(s) are also compliantly rejected on prior art under 102 or 103. Otherwise, the question should be answered “No”. For instance, if the examiner made a compliant rejection under 102(a)(2) which is easily overcome by invoking a 102(b)(2) exception, and the reviewer finds another reference that anticipates under 102(a)(1) that is not able to be overcome by any exception, then the reviewer may use this question to raise a proposed prior art rejection. This is not intended to

include additional rejections that the reviewer believes should be considered, but rather should be limited to those grounds that serve as a “back-up” rejection for those compliant prior art rejections that are easily overcome, such as in the example above. This question should not be used to propose any non-prior art rejections, nor should it be used to merely cite additional prior art references that are not included as part of a backup prior art rejection. It should always be used in conjunction with a compliant prior art rejection made by the examiner. If no compliant prior art rejection is present, instead it would be appropriate to raise the proposed prior art rejection as part of an Omitted Rejection. A backup prior art rejection in this case should be a complete rejection and fully explained by the reviewer.

In situations where the reviewer finds that a prior art rejection made by the examiner under 102 or 103 is non-compliant and the reviewer wishes to suggest a compliant prior art rejection against the claims for TC consideration, the reviewer should include any information concerning a suggested compliant prior art rejection for TC consideration in the respective prior art rejection comments box (suggestions, feedback, best practices, etc.).

In general, the reviewer should be making the decisions with regard to omitted prior art rejections supporting a noncompliance and not shifting that burden to the TCs. If the reviewer concluded that the reference does not reasonably support a noncompliance based on an omitted rejection, it should not be raised for further consideration to the TC.

46. Accolade related to other Quality Issues?

The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check “No”.

Yes or No

Comments related to Other Issues for accolade Letter. (Complete the following sentence).

.

Specifically, the OPQA reviewer commented with regard to other issues addressed in the Office action that that:

Finality *(Only if the Office Action is Final will this section be populated)*

47. Was the finality of the Office action proper (prosecution closed)?

Yes or No

- i. If "No" continue to question 46*
- ii. If "Yes", go to question 47*

48. Indicate reason (check all that apply):

- a. ☐ New grounds of rejection were not necessitated by amendment
- b. ☐ The Office action is a first action final after RCE; however, an Advisory Action was mailed and included an indication that proposed amendments after final rejection would not be entered because they raise new issues that would require further consideration and/or search.
- c. ☐ The new prior art was submitted in an IDS during the period set forth in 37 CFR 1.97(c), but the IDS was submitted with a statement under 37 CFR 1.97(e) instead of a fee under 37 CFR 1.17(p).

49. Finality Comments (suggestions, feedback, best practices, etc.):

*The reviewer may include any suggestions or feedback they believe would benefit the examiner.
The reviewer may comment on best practices that the examiner may want to consider.
Suggestions, feedback and comments on best practices are optional here.*

50. Accolade related to Finality?

The reviewer should consult the current accolade procedures and guidance documents. When an accolade is indicated, the sentence must be completed following the current accolade procedures and guidance. If an accolade is not appropriate, then check "No".

Yes or No

Comments related to the Finality Letter. (Complete the following sentence).

Specifically, the OPQA reviewer commented with regard to the Finality that: